SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN JOAQUIN
180 E Weber Avenue
Stockton, CA 95202

NOTICE TO FILING PARTY

Case#: STK-CV-UF-2026-0001094
Case Title: Brendan Ngwa Nforbi vs Diamond Truck Sales, Inc., a California corporation et al.

We are unable to process the attached papers for the reasons indicated below:

Denial Reason: Default cannot be entered at this time as 1A, 1B and 1C are all blank/incomplete. 6 on page 2 of the Default is not a named Defendant. The Proof of Service as to Alpine Truck is invalid, as they were not served as sued, and there is no Proof of Service as to Diamond Truck. There are also documents missing if you are in fact requesting a Court Judgmnet. Please be sure you are aware of all required filings, when submitting a default and default judgment.

Please return this form if papers are resubmitted.
Please enclose a self-addressed stamped envelope to expedite receipt of returned papers.

Papers returned to: Brendan Ngwa Nforbi

Returned via: Pro Per pick up

Stephanie Bohrer, Clerk of the Court

Date: 07/30/2026 **By:** Natalie Bashaw ,Deputy

NOTICE TO FILING PARTY

ATTORNEY (Name and Address):	SBN:	FOR COURT USE ONLY
Brendan Ngwa Nforbi **1455 Cat Tail Drive** **Stockton, CA 95204** EMAIL: ATTORNEY FOR: **In Propria Persona**		FILED SUPERIOR COURT SAN JOAQUIN 2026 MAY 18 P 1:13 STEPHANIE BOHRER, CLERK BY _____ DEPUTY
NAME OF COURT, JUDICIAL DISTRICT or BRANCH COURT, IF ANY: **San Joaquin County Superior Court** **180 East Weber Avenue** **Stockton, CA 95202**		
PLAINTIFF: **Brendan Ngwa Nforbi** DEFENDANT: **Diamond Truck Sales, Inc., a California corporation; and Doe**		COURT CASE NO: **STKCVUF20261094**
Proof of Service of Summons		LEVYING OFFICER FILE NO: **2026001867**

1. At the time of the service I was at least 18 years of age and not a party to this action.
2. I served copies of the:
   f. other *(specify documents):*
   First Amended Complaint , Notice of Case Assignment and Notice of Hearing, Summons
3. a. Party Served *(specify name of party as shown on documents served):*
   Diamond Truck Sales, Inc., a California corporation
   b. Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
   Mustagem Usmani / General Manager
4. Address where party was served: **1201 S. Soderquist Rd.**
   Turlock, CA 95380
5. I served the party:
   a. **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on: 05/12/2026 at: 10:37 AM.
6. the "Notice to the Person Served" (on the summons) was completed as follows:
   d. on behalf of *(specify):* Diamond Truck Sales, Inc., a California corporation
   under the following Code of Civil Procedure section: **416.10 (corporation)**
7. **Person who served the papers:**
   a. Name: **Deputy P. Heaney**
   b. Address: **P.O. Box 3288, Modesto, CA 95353, 921 Oakdale Road, MODESTO, CA 95355**
   c. Telephone number: **(209) 491-8762**
   d. **The fee** for service was: **$50.00 (Waiver)**
9. **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: Wednesday, May 13, 2026 **by:** _____

Sheriff's Authorized Agent
Jeff Dirkse

(c) CountySuite Sheriff, Teleosoft, Inc.

CIVIL CASE
Case Status
Civil Case
Civil Hearings
Document Mgmt
Judges
ROA

CIVIL ROA SUMMARY

STK-CV-UF-2026-0001094 Brendan Ngwa Nforbi vs Diamond Truck Sales, Inc., a California corporati

Advanced Search

SORT DATE ○ Ascending ◉ Descending

*DATE	07/27/2026 01:54 PM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE FILE	ACTION TYPE
*TEXT	Case Management Statement filed by Ngwa Nforbi, Brendan.		
DOCUMENTS	CM110 CASE MANAGEMENT STATEMENT		

*DATE	07/15/2026 11:58 AM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE FILE	ACTION TYPE
*TEXT	Notice of Change of Address filed by Ngwa Nforbi, Brendan.		
DOCUMENTS	NOTICE		

*DATE	07/15/2026 09:56 AM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE POS	ACTION TYPE
*TEXT	Proof of Service of Summons as to Alpine Truck Sales, Inc., a California corporation (sued individually and as the successor in inter continuation, and/or alter ego of Diamond Truck Sales, Inc.) served on 07/01/2026 by Personal Service. $50.00. *FAC		
DOCUMENTS	POS010 PROOF OF SERVICE OF SUMMONS		

*DATE	07/13/2026 02:42 PM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE FILE	ACTION TYPE
*TEXT	Notice of Change of Address filed by Ngwa Nforbi, Brendan.		
DOCUMENTS	NOTICE OF CHANGE OF ADDRESS		

*DATE	07/06/2026 03:19 PM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE POSF	ACTION TYPE
*TEXT	Proof of service of Summons on Amended Complaint filed by Ngwa Nforbi, Brendan.		
DOCUMENTS	POS010 PROOF OF SERVICE OF SUMMONS		

*DATE	06/15/2026 11:12 AM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE DEFAULT	ACTION TYPE
*TEXT	Request for Default against Diamond Truck Sales, Inc., a California corporation, Alpine Truck Sales, Inc., a California corporation (s as the successor in interest, mere continuation, and/or alter ego of Diamond Truck Sales, Inc.) Not Entered		
DOCUMENTS	CIV100 REQUEST FOR ENTRY OF DEFAULT OR DEFAULT JUDGMENT NOTICE TO FILING PARTY		

*DATE	06/15/2026 11:12 AM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE FILE	ACTION TYPE
*TEXT	Request for Entry of Default and Default Court Judgment filed by Ngwa Nforbi, Brendan.		
DOCUMENTS			

*DATE	06/11/2026 11:46 AM	*JUDGE Waters, Robert T.	MICROFILM NUMBER
SEALED	☐	CODE SUMIS	ACTION TYPE
*TEXT	Summons on Amended Complaint issued and filed.		
DOCUMENTS	SUM100 SUMMONS CIVIL		

*DATE	05/29/2026 12:01 PM	*JUDGE Waters, Robert T.	MICROFILM NUMBER

SEALED ☐ CODE FILE ACTION TYPE
*TEXT Proof of Personal Service of Summons filed by Ngwa Nforbi, Brendan. *possible duplicate
DOCUMENTS POS010 PROOF OF SERVICE OF SUMMONS

*DATE 05/18/2026 01:13 PM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE POSF ACTION TYPE
*TEXT Proof of service of Summons filed by Ngwa Nforbi, Brendan.
DOCUMENTS POS010 PROOF OF SERVICE OF SUMMONS

*DATE 05/18/2026 01:13 PM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE POSF ACTION TYPE
*TEXT Proof of service of Summons filed by Ngwa Nforbi, Brendan.
DOCUMENTS POS010 PROOF OF SERVICE OF SUMMONS

*DATE 05/11/2026 10:22 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE FILE ACTION TYPE
*TEXT First Amended Complaint filed by Ngwa Nforbi, Brendan.
DOCUMENTS AMENDED COMPLAINT

*DATE 03/17/2026 09:19 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE POS ACTION TYPE
*TEXT Proof of Service of Summons as to Diamond Truck Sales, Inc., a California corporation served on 03/10/2026 by Personal Service.
DOCUMENTS POS010 PROOF OF SERVICE OF SUMMONS

*DATE 03/17/2026 08:55 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE POSF ACTION TYPE
*TEXT Proof of Service of Summons as to Diamond Truck Sales, Inc., a California corporation served on 03/11/2026 by Personal Service. Nforbi, Brendan.
DOCUMENTS POS010 PROOF OF SERVICE OF SUMMONS

*DATE 02/13/2026 02:54 PM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE SUMIS ACTION TYPE
*TEXT AMENDED Summons issued and filed.
DOCUMENTS SUM100 AMENDED SUMMONS CIVIL

*DATE 02/13/2026 11:54 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE JUENT ACTION TYPE
*TEXT Order on Application for Waiver of Court Fees and Costs - Granted as to Brendan Ngwa Nforbi.
DOCUMENTS FW003 ORDER ON COURT FEE WAIVER

*DATE 02/13/2026 11:53 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE SHSET ACTION TYPE
*TEXT Hearing regarding: Case Management Conference , set for 08/12/2026 at 8:30 AM before Hon. Robert T. Waters in Department 11E
DOCUMENTS

*DATE 02/13/2026 11:53 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE FILE ACTION TYPE
*TEXT Request to Waive Court Fees filed by Ngwa Nforbi, Brendan.
DOCUMENTS

*DATE 02/13/2026 11:53 AM *JUDGE Waters, Robert T. MICROFILM NUMBER
SEALED ☐ CODE SUMIS ACTION TYPE
*TEXT Summons issued and filed.
DOCUMENTS SUM100 SUMMONS CIVIL

*DATE	02/13/2026 11:53 AM	*JUDGE	Waters, Robert T.	MICROFILM NUMBER	
SEALED	☐	CODE	FILE	ACTION TYPE	
*TEXT	Civil Case Cover Sheet filed by Ngwa Nforbi, Brendan.				
DOCUMENTS	CM010 CIVIL CASE COVER SHEET				

*DATE	02/13/2026 11:53 AM	*JUDGE	Waters, Robert T.	MICROFILM NUMBER	
SEALED	☐	CODE	FILE	ACTION TYPE	
*TEXT	Complaint Unlimited Civil (over $35,000) filed by Ngwa Nforbi, Brendan.				
DOCUMENTS	COMPLAINT				

*DATE	02/13/2026 11:53 AM	*JUDGE	Waters, Robert T.	MICROFILM NUMBER	
SEALED	☐	CODE	NOCASI	ACTION TYPE	
*TEXT	Notice of Case Assignment and Scheduling Information.				
DOCUMENTS	NOTICE OF CASE ASSIGNMENT SCHEDULING INFORMATION				

*DATE	02/13/2026 11:53 AM	*JUDGE	Waters, Robert T.	MICROFILM NUMBER	
SEALED	☐	CODE	CI	ACTION TYPE	
*TEXT	Case initiated.				
DOCUMENTS					

LIST REFRESH CANCEL

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
E-MAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN JOAQUIN
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

Plaintiff/Petitioner: BRENDAN NGWA NFORBI
Defendant/Respondent: DIAMOND TRUCK SALES, INC., a California corporation

REQUEST FOR (Application) ☑ **Entry of Default** ☐ **Clerk's Judgment** ☑ **Court Judgment**

CASE NUMBER: STK-CV-UF-2026-0001094

Not for use in actions under the Fair Debt Buying Practices Act (Civ. Code, § 1788.50 et seq.); (see form CIV-105)

1. TO THE CLERK: On the complaint or cross-complaint filed
   a. on *(date):* 05/11/2026
   b. by *(name):* Brendan Ngwa Nforbi
   c. ☑ Enter default of defendant *(names):*
      DIAMOND TRUCK SALES, INC., a California corporation
   d. ☑ I request a court judgment under Code of Civil Procedure sections 585(b), 585(c), 989, etc., against defendant *(names):*
      DIAMOND TRUCK SALES, INC., a California corporation
      (Testimony required. Apply to the clerk for a hearing date, unless the court will enter a judgment on an affidavit under Code Civ. Proc., § 585(d).)
   e. ☐ Enter clerk's judgment
      (1) ☐ for restitution of the premises only and issue a writ of execution on the judgment. Code of Civil Procedure section 1174(c) does not apply. (Code Civ. Proc., § 1169.)
         ☐ Include in the judgment all tenants, subtenants, named claimants, and other occupants of the premises. The *Prejudgment Claim of Right to Possession* was served in compliance with Code of Civil Procedure section 415.46.
      (2) ☐ under Code of Civil Procedure section 585(a). *(Complete the declaration under Code Civ. Proc., § 585.5 on the reverse (item 5).)*
      (3) ☐ for default previously entered on *(date):*

2. **Judgment to be entered.**

	Amount	Credits acknowledged	Balance
a. Demand of complaint	$ 49,368.65	$ 0.00	$ 49,368.65
b. Statement of damages*			
(1) Special	$	$	$
(2) General	$	$	$
c. Interest	$ 4,302.55	$ 0.00	$ 4,302.55
d. Costs *(see reverse)*	$ 0.00	$ 0.00	$ 0.00
e. Attorney fees	$	$	$
f. **TOTALS**	$ 53,671.20	$ 0.00	$ 53,671.20

   g. **Daily damages** were demanded in complaint at the rate of: $ per day beginning *(date):*

(Personal injury or wrongful death actions; Code Civ. Proc., § 425.11.)*

3. ☐ *(Check if filed in an unlawful detainer case.)* **Legal document assistant or unlawful detainer assistant** information is on the reverse *(complete item 4).*

Date: 08/04/2026

BRENDAN NGWA NFORBI
(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF OR ATTORNEY FOR PLAINTIFF)

FOR COURT USE ONLY

(1) ☐ Default entered as requested on *(date):*
(2) ☐ Default NOT entered as requested *(state reason):*

Clerk, by _____, Deputy

Form Adopted for Mandatory Use
Judicial Council of California
CIV-100 [Rev. January 1, 2023]

REQUEST FOR ENTRY OF DEFAULT
(Application to Enter Default)

Code of Civil Procedure, §§ 585–587, 1169
www.courts.ca.gov

Plaintiff/Petitioner: BRENDAN NGWA NFORBI Defendant/Respondent: DIAMOND TRUCK SALES, INC., a California corporation	CASE NUMBER: STK-CV-UF-2026-0001094

4. **Legal document assistant or unlawful detainer assistant (Bus. & Prof. Code, § 6400 et seq.).** A legal document assistant or unlawful detainer assistant ☐ did ☑ did **not** for compensation give advice or assistance with this form. If declarant has received **any** help or advice for pay from a legal document assistant or unlawful detainer assistant, state:

   a. Assistant's name:
   b. Street address, city, and zip code:
   c. Telephone no.:
   d. County of registration:
   e. Registration no.:
   f. Expires on *(date):*

5. ☐ **Declaration under Code Civ. Proc., § 585.5** *(for entry of default under Code Civ. Proc., § 585(a)).* This action

   a. ☐ is ☑ is not on a contract or installment sale for goods or services subject to Civ. Code, § 1801 et seq. (Unruh Act).
   b. ☐ is ☑ is not on a conditional sales contract subject to Civ. Code, § 2981 et seq. (Rees-Levering Motor Vehicle Sales and Finance Act).
   c. ☐ is ☑ is not on an obligation for goods, services, loans, or extensions of credit subject to Code Civ. Proc., § 395(b).

6. **Declaration of mailing (Code Civ. Proc., § 587).** A copy of this *Request for Entry of Default* was

   a. ☐ **not mailed** to the following defendants, whose addresses are unknown to plaintiff or plaintiff's attorney *(names):*

   b. ☑ **mailed** first-class, postage prepaid, in a sealed envelope addressed to each defendant's attorney of record or, if none, to each defendant's last known address as follows:

      (1) Mailed on *(date):* August 4, 2026

      (2) To *(specify names and addresses shown on the envelopes):*

      Diamond Truck Sales, Inc.
      1201 S. Soderquist Road
      Turlock, CA 95380

I declare under penalty of perjury under the laws of the State of California that the foregoing items 4, 5, and 6 are true and correct.

Date: 08/04/2026

BRENDAN NGWA NFORBI
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

7. **Memorandum of costs** *(required if money judgment requested).* Costs and disbursements are as follows (Code Civ. Proc., § 1033.5):

   a. Clerk's filing fees . . . . . $
   b. Process server's fees . . . . . $
   c. Other *(specify):* $
   d. $
   e. **TOTAL** . . . . . $ _____
   f. ☑ Costs and disbursements are waived.
   g. I am the attorney, agent, or party who claims these costs. To the best of my knowledge and belief this memorandum of costs is correct and these costs were necessarily incurred in this case.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 7 is true and correct.

Date: 08/04/2026

BRENDAN NGWA NFORBI
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

Plaintiff/Petitioner: BRENDAN NGWA NFORBI Defendant/Respondent: DIAMOND TRUCK SALES, INC., a California corporation	CASE NUMBER: STK-CV-UF-2026-0001094

8. **Declaration of nonmilitary status** *(required for a judgment).*
No defendant/respondent named in item 1c is in the military service of the United States as defined by either the Servicemembers Civil Relief Act (see 50 U.S.C. § 3911(2)) or California Military and Veterans Code sections 400 and 402(f).

I know that no defendant/respondent named in item 1c is in the U.S. military service because *(check all that apply)*:

a. ☐ the search results that I received from *https://scra.dmdc.osd.mil/* say the defendant/respondent is not in the U.S. military service.
b. ☐ I am in regular communication with the defendant/respondent and know that they are not in the U.S. military service.
c. ☐ I recently contacted the defendant/respondent, and they told me that they are not in the U.S. military service.
d. ☐ I know that the defendant/respondent was discharged from U.S. military service on or about *(date):*
e. ☑ the defendant/respondent is not eligible to serve in the U.S. military because they are:
   ☐ incarcerated ☑ a business entity
f. ☐ other *(specify):*

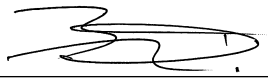
Note

- U.S. military status can be checked online at *https://scra.dmdc.osd.mil/*.
- If the defendant/respondent is in the military service, or their military status is unknown, the defendant/respondent is entitled to certain rights and protections under federal and state law before a default judgment can be entered.
- For more information, see *https://selfhelp.courts.ca.gov/military-defaults*.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 8 is true and correct.

Date: 08/04/2026

BRENDAN NGWA NFORBI
(TYPE OR PRINT NAME)


(SIGNATURE OF DECLARANT)

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN JOAQUIN
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

PLAINTIFF: Brendan Ngwa Nforbi
DEFENDANT: Diamond Truck Sales, Inc., a California corporation, et al.

JUDGMENT

☐ **By Clerk** ☑ **By Default** ☐ **After Court Trial**
☑ **By Court** ☐ **On Stipulation** ☐ **Defendant Did Not Appear at Trial**

CASE NUMBER:
STK-CV-UF-2026-0001094

JUDGMENT

1. ☑ **BY DEFAULT**
   a. Defendant was properly served with a copy of the summons and complaint.
   b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
   c. Defendant's default was entered by the clerk upon plaintiff's application.
   d. ☐ **Clerk's Judgment** (Code Civ. Proc., § 585(a)). Defendant was sued only on a contract or judgment of a court of this state for the recovery of money.
   e. ☑ **Court Judgment** (Code Civ. Proc., § 585(b)). The court considered
      (1) ☐ plaintiff's testimony and other evidence.
      (2) ☑ plaintiff's written declaration (Code Civ. Proc., § 585(d)).
2. ☐ **ON STIPULATION**
   a. Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and
   b. ☐ the signed written stipulation was filed in the case.
   c. ☐ the stipulation was stated in open court ☐ the stipulation was stated on the record.
3. ☐ **AFTER COURT TRIAL.** The jury was waived. The court considered the evidence.
   a. The case was tried on *(date and time):*
      before *(name of judicial officer):*
   b. Appearances by
      ☐ plaintiff *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ plaintiff's attorney *(name each):*
      (1)
      (2)
      ☐ defendant *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ defendant 's attorney *(name each):*
      (1)
      (2)
   c. ☐ Defendant did not appear at trial. Defendant was properly served with notice of trial.
   d. ☐ A statement of decision (Code Civ. Proc., § 632) ☐ was not ☐ was requested.

PLAINTIFF: Brendan Ngwa Nforbi DEFENDANT: Diamond Truck Sales, Inc., a California corporation, et al.	CASE NUMBER: STK-CV-UF-2026-0001094

JUDGMENT IS ENTERED BY ☑ THE COURT ☐ THE CLERK AS FOLLOWS:

4. ☐ **Stipulated Judgment.** Judgment is entered according to the stipulation of the parties.
5. **Parties.** Judgment is
   a. ☑ for plaintiff *(name each):*
   Brendan Ngwa Nforbi

   and against defendant *(names):*
   Diamond Truck Sales, Inc., a California corporation

   ☐ Continued on Attachment 5a.

   b. ☐ for defendant *(name each):*

   c. ☐ for cross-complainant *(name each):*

   and against cross-defendant *(name each):*

   ☐ Continued on Attachment 5c.

   d. ☐ for cross-defendant *(name each):*

6. **Amount.**
   a. ☑ Defendant named in item 5a above must pay plaintiff on the complaint

(1) ☑ Damages	$ 49,368.65
(2) ☑ Prejudgment interest at the annual rate of 7 %	$ 4,302.55
(3) ☐ Attorney fees	$
(4) ☑ Costs	$ 0.00
(5) ☐ Other *(specify):*	$
(6) **TOTAL**	$ 53,671.20

   b. ☐ Plaintiff to receive nothing from defendant named in item 5b.
   ☐ Defendant named in item 5b to recover costs: $
   ☐ and attorney fees: $

   c. ☐ Cross-defendant named in item 5c above must pay cross-complainant on the cross-complaint

(1) ☐ Damages	$
(2) ☐ Prejudgment interest at the annual rate of %	$
(3) ☐ Attorney fees	$
(4) ☐ Costs	$
(5) ☐ Other *(specify):*	$
(6) **TOTAL**	$

   d. ☐ Cross-complainant to receive nothing from cross-defendant named in item 5d.
   ☐ Cross-defendant named in item 5d to recover costs: $
   ☐ and attorney fees: $

7. ☐ Judgment debtor is a natural person, and as provided in the relevant statute,
   $ of this judgment is on a claim related to medical expenses (Code Civ. Proc., §§ 683.110, 685.010)
   $ of this judgment is on a claim related to personal debt (Code Civ. Proc., §§ 683.110, 685.010), which includes: $ concerning consumer debt (Code Civ. Proc., § 708.111).
8. ☑ Other *(specify):*
   The April 4, 2023 purchase transaction between Plaintiff and Diamond Truck Sales, Inc. is rescinded, and the contractual "as-is" disclaimer is unenforceable.

Date: ☐ _____
JUDICIAL OFFICER

Date: ☐ Clerk, by _____ , Deputy

(SEAL)

CLERK'S CERTIFICATE *(optional)*
I certify that this is a true copy of the original judgment on file in the court.

Date:

Clerk, by _____ , Deputy

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form

ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton
STATE: CA
ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442
FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR *(name)*: Plaintiff, In Pro Per

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN JOAQUIN
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

PLAINTIFF/PETITIONER: BRENDAN NGWA NFORBI
DEFENDANT/RESPONDENT: DIAMOND TRUCK SALES, INC., et al.

REQUEST FOR DISMISSAL

CASE NUMBER:
STK-CV-UF-2026-0001094

A conformed copy will not be returned by the clerk unless a method of return is provided with the document.

This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)

1. TO THE CLERK: Please **dismiss** this action as follows:
   a. (1) ☐ With prejudice (2) ☑ Without prejudice (3) ☐ Without prejudice and with the court retaining jurisdiction (Code Civ. Proc., § 664.6)
   b. (1) ☑ Complaint (2) ☐ Petition
      (3) ☐ Cross-complaint filed on *(date):* by *(name):*
      (4) ☐ Cross-complaint filed on *(date):* by *(name):*
      (5) ☐ Entire action of all parties and all causes of action
      (6) ☑ Other *(specify)*:* Does 1 through 20, inclusive, only
2. *(Complete in all cases except family law cases.)*
   The court ☑ did ☐ did not waive court fees and costs for a party in this case. *(This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed.)*

Date: 08/04/2026
BRENDAN NGWA NFORBI
(TYPE OR PRINT NAME OF ☐ ATTORNEY ☑ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

* If dismissal requested is of specified parties only, of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed

Attorney or party without attorney for
☑ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.†
Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

† If item 1a(3) is checked, all parties must sign.
If a cross-complaint—or *Response—Marriage/Domestic Partnership* (form FL-120) seeking affirmative relief—is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

Attorney or party without attorney for
☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

☐ Check here and use form MC-025 or a separate page for additional signatures. Include date, printed name, and party information.

4. ☐ Dismissal entered as requested on *(date):*
5. ☐ Dismissal entered on *(date):* as to only *(name):*
6. ☐ Dismissal **not entered** as requested for the following reasons *(specify):*

7. a. ☐ Attorney or party without attorney notified on *(date):*
   b. ☐ Attorney or party without attorney not notified. Filing party failed to provide
      ☐ a copy to be conformed ☐ means to return conformed copy

Date: Clerk, by , Deputy

Form Adopted for Mandatory Use
Judicial Council of California
CIV-110 [Rev. January 1, 2025]

Code of Civil Procedure, § 581 et seq.;
Government Code, § 68637(c); Cal. Rules of Court, rule 3.1390
www.courts.ca.gov

PLAINTIFF/PETITIONER: BRENDAN NGWA NFORBI DEFENDANT/RESPONDENT: DIAMOND TRUCK SALES, INC., et al.	CASE NUMBER: STK-CV-UF-2026-0001094

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover $10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name):* Brendan Ngwa Nforbi
2. The person named in item 1 is *(check one below)*
   a. ☐ not recovering anything of value by this action.
   b. ☐ recovering less than $10,000 in value by this action.
   c. ☑ recovering $10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one):* ☐ Yes ☑ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: 08/04/2026

BRENDAN NGWA NFORBI

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☑ PARTY MAKING DECLARATION)

(SIGNATURE)

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form

BRENDAN NGWA NFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **DIAMOND TRUCK SALES, INC., a California corporation; ALPINE TRUCK SALES, INC., a California corporation; and DOES 1 through 20, inclusive,** Defendants.	Case No. STK-CV-UF-2026-0001094 **DECLARATION OF BRENDAN NGWA NFORBI IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT BY COURT** (Cal. Rules of Court, rule 3.1800; Code Civ. Proc. section 585(b)) Assigned to: Hon. Waters, Dept. 11B CMC: August 12, 2026 [Date Executed: August 4, 2026]

DECLARATION OF BRENDAN NGWA NFORBI

IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT BY COURT

(Cal. Rules of Court, rule 3.1800; Code Civ. Proc. section 585(b))

I, **BRENDAN NGWA NFORBI**, declare:

I. PRELIMINARY STATEMENT

1. I am the Plaintiff in the above-entitled action and am over eighteen years of age. The

matters set forth herein are within my personal knowledge unless stated on information and belief, and if called as a witness, I could and would competently testify to them. I submit this Declaration in support of my Request for Entry of Default Judgment by the Court (Judicial Council Form CIV-100) against Defendant **DIAMOND TRUCK SALES, INC.** ("Diamond"), pursuant to Code of Civil Procedure section 585, subdivision (b), and California Rules of Court, rule 3.1800.

2. This Declaration is submitted together with the following companion documents constituting my prove-up package: (a) the Court's Notice to Filing Party on the prior default submission (returned with this resubmission as directed); (b) Plaintiff's Request for Entry of Default Judgment (Form CIV-100), including the Declaration of Nonmilitary Status at CIV-100 item 8; (c) Plaintiff's Request for Dismissal of Does 1 through 20 (Form CIV-110); (d) Plaintiff's [Proposed] Judgment by Court After Default (Form JUD-100); and (e) the documentary exhibits referenced herein and listed in the Index of Exhibits below. Plaintiff waives costs of suit on CIV-100 item 7f; no Memorandum of Costs (Form MC-010) is filed with this packet. Plaintiff seeks compensatory relief only and does not request punitive damages in this filing.

II. PROCEDURAL POSTURE

3. The operative pleading in this action is the First Amended Complaint ("FAC"), which asserts eight causes of action against Defendant Diamond: (1) Fraudulent Concealment; (2) Intentional Misrepresentation; (3) Negligent Misrepresentation; (4) Breach of Contract; (5) Breach of Implied Warranty of Merchantability (Cal. Comm. Code section 2314); (6) Violation of the Unfair Competition Law (Bus. & Prof. Code section 17200 et seq.); (7) Rescission and Restitution; and (8) Declaratory Relief.

4. The FAC was personally served on Diamond on May 12, 2026, and the Proof of Service was filed with this Court on May 18, 2026. Diamond's deadline to respond to the FAC

expired on June 11, 2026. Diamond filed no responsive pleading, demurrer, or other appearance. Plaintiff has requested entry of Diamond's default by Request for Entry of Default (Form CIV-100) submitted with this packet; the prior June 15, 2026 request was Not Entered, and no default against Diamond appears of record as of the execution of this Declaration.

5. Upon entry of Diamond's default, the well-pleaded factual allegations of the FAC concerning liability are deemed admitted. (*Steven M. Garber & Assocs. v. Eskandarian* (2007) 150 Cal.App.4th 813, 823; *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 281.) The well-pleaded allegations include, without limitation: that Diamond knowingly sold to me a 2014 Volvo VNL diesel semi-truck (VIN 4V4NC9EH6EN142206) that suffered from an undisclosed and material defect in its Diesel Exhaust Fluid ("DEF") and Selective Catalytic Reduction ("SCR") emissions systems; that the defect rendered the truck non-compliant with California emissions law and unsafe for highway operation; and that Diamond had pre-sale knowledge of the defect and concealed it.

6. This Declaration addresses only the amount and proof of damages. I have made no effort to relitigate liability, which will be deemed established upon entry of Diamond's default.

III. THE TRANSACTION AND THE FAILURE

7. On April 4, 2023, I purchased the subject truck (2014 Volvo VNL, VIN 4V4NC9EH6EN142206) from Diamond. The transaction was documented by a Retail Buyer's Order reflecting a Cash Price of $26,900.00 and Total Charges of $27,092.75 after document and title fees. A true and correct copy of the Retail Buyer's Order is attached as Exhibit 1.

8. I paid Diamond a deposit of $12,345.10 by certified funds at the time of sale. This amount appears in the "DEPOSIT" line and is reflected in the "TOTAL CREDITS" line of the Retail Buyer's Order (Exh. 1, p. 1).

9. The remaining balance of $14,747.65 was financed through a third-party lender, Dakota Financial LLC, which was selected, arranged, or facilitated by Diamond in connection with the sale.

10. In connection with titling the truck I was billed by the California Department of Motor Vehicles in the amount of $3,442.00 for use tax, weight, transfer, and related fees required to complete registration. The California DMV "Generated Fees" printout dated May 8, 2023 reflects Total Fees Due of $3,442.00. I have not yet paid this amount because the truck failed before registration could be completed, leaving me with an outstanding DMV obligation that continues to accrue penalties. The California DMV "Generated Fees" printout and the corresponding DMV Report of Deposit of Fees and Application materials are attached as Exhibit 2. I include this amount in my damages because it is a real, documented financial obligation owed to the State of California as a direct consequence of Diamond's sale to me of a defective and non-compliant truck.

11. In connection with the sale Diamond also enrolled me in a GAP product, for which I was charged $1,895.00 under a separate GAP Addendum. A true and correct copy of the GAP Addendum is attached as Exhibit 3.

12. I purchased the truck specifically to use it in commercial freight service under my own owner-operator authority. On April 27, 2023, twenty-three days after purchase, I executed a Lease-On Owner Operator Agreement with Gobbato Builders, LLC (MC #1357325) under which I would haul freight for compensation paid weekly by Friday settlement. The Lease-On Agreement specifically identifies my truck by VIN. A true and correct copy of the Lease-On Owner Operator Agreement is attached as Exhibit 4. On the same day, April 27, 2023, my Amazon Relay driver account was activated, providing me with access to dispatch hauling loads through the Amazon Relay platform. A true and correct copy of the Amazon Relay driver setup

verification, bearing my signature and the platform's digital verification code of April 27, 2023 9:22 AM PDT, is attached as Exhibit 5.

13. Within days of beginning operations the truck experienced exactly the failure mode characteristic of the DEF/SCR defect alleged in the FAC: it entered engine derate ("limp mode"), emitted excessive black smoke, lost power, and became incapable of exceeding approximately 35 miles per hour. The truck was thereby rendered commercially unusable and unsafe for highway operation. Despite my repeated attempts to repair it (described in Sections IV and V below), the truck never returned to lawful commercial service.

IV. DOCUMENTED ECONOMIC LOSSES AND OUTSTANDING OBLIGATIONS

14. I have incurred the following documented economic losses and obligations, each of which flows directly from Diamond's wrongful conduct as alleged in the FAC. Items (a), (b), and (d) through (g) represent cash payments made from my own funds; item (c) represents an outstanding DMV obligation billed to me in connection with the transaction and not yet paid, as described in paragraph 10 above:

(a) 04/04/2023 -- Diamond deposit (Retail Buyer's Order) ..... $12,345.10 (Exh. 1);

(b) 05/04/2023 -- GAP Addendum enrollment ..... $1,895.00 (Exh. 3);

(c) 05/08/2023 -- California DMV fees (billed; outstanding) ..... $3,442.00 (Exh. 2);

(d) 04/28/2023 -- Brannon Tire (emergency tire/road service) .... $1,197.34 (Exh. 6);

(e) 05/21/2023 -- Mobile Will's Truck/Auto Repair Shop ..... $740.00 (Exh. 7);

(f) 05/26/2023 -- Golden Empire Towing, Inc. ..... $562.50 (Exh. 8);

(g) 06/23/2023 -- Western Truck Center (lamp/parts) ..... $36.71 (Exh. 9).

SUBTOTAL -- DOCUMENTED ECONOMIC LOSSES: $20,218.65.

15. Each of Exhibits 1, 2, 3, 6, 7, 8, and 9 is a true and correct copy of the contemporaneous record of the corresponding charge or obligation. None of these losses would have been incurred but for Diamond's sale to me of the defective and non-compliant truck. With respect to item (c), the $3,442.00 DMV obligation is fully documented by Exhibit 2, remains outstanding, and continues to accrue penalties -- making it an ongoing and expanding consequence of the transaction.

V. ADDITIONAL OUT-OF-POCKET LOSSES -- NO CONTEMPORANEOUS RECEIPT

16. In addition to the documented charges set forth above, I personally paid in cash, from my own funds, two further amounts for emergency services performed on the truck. Although I did not retain itemized written receipts -- despite having requested them at the time -- these payments are facts within my direct personal knowledge, and the surrounding contemporaneous record corroborates that the truck was in storage, released, transported, and delivered for repair during this period:

(a) Commercial Towing storage-release fee -- $750.00. On or about May 23, 2023, the truck was towed and stored under California Vehicle Code section 22852 by Commercial Towing, located at 2609 Texas Street, Bakersfield, California. The

contemporaneous Notice of Stored Vehicle issued under Vehicle Code section 22852 is attached as Exhibit 10. I paid Commercial Towing $750.00 in cash to release the truck. I requested a written receipt but the operator did not provide one.

(b) Almaraz Diesel repair -- $5,000.00. After the truck was released from Commercial Towing, Golden Empire Towing transported it (under the invoice constituting Exh. 8) to Almaraz Diesel, which at that time was operating out of Diamond's Bakersfield, California location. Almaraz Diesel performed diagnostic and repair work on the DEF/SCR system. I paid approximately $5,000.00 for that work. I did not receive an itemized written receipt.

17. The two undocumented amounts above total $5,750.00. I respectfully request that the Court consider them on the basis of my sworn testimony, in light of the corroborating documentary evidence -- specifically, the contemporaneous CVC section 22852 Notice (Exh. 10) and the Golden Empire Towing invoice (Exh. 8), which together establish the chain of custody between the storage release and Almaraz Diesel. To the extent the Court declines to award the undocumented amounts, my documented out-of-pocket subtotal of $20,218.65 (Section IV above) is fully supported by Exhibits 1, 2, 3, 6, 7, 8, and 9.

VI. LOST COMMERCIAL INCOME

18. Because of the truck's failure I was unable to perform under the Lease-On Owner Operator Agreement with Gobbato Builders, LLC (Exh. 4), and I was unable to dispatch any meaningful number of loads through the Amazon Relay platform (Exh. 5). The truck was operational for only a matter of days before catastrophic failure. By late May 2023 it had been towed and stored under Vehicle Code section 22852. By June 23, 2023 the final attempted repair (the Western Truck Center lamp work, Exh. 9) had failed to restore commercial operability. The truck was thereafter rendered permanently commercially unusable.

19. Under the Lease-On Agreement with Gobbato Builders, LLC (Exh. 4, paragraph III), I was set up to operate at a 10% lease-on fee -- meaning I would have netted approximately 90% of gross load revenue, less fuel, insurance, and incidental expenses. Based on prevailing rates on the Amazon Relay platform in 2023 and my reasonable expectations at the time the FAC was filed, I had projected and pleaded approximately $1,800 in net weekly earnings had the truck been operational. (FAC, paragraph 31.)

20. For purposes of this prove-up, and recognizing that I do not have month-by-month settlement statements documenting every load I would have hauled, I respectfully request lost commercial income on a deliberately conservative basis: 18 weeks of lost operation (conservative -- May through September 2023) at $1,300/week (well below the $1,800 pleaded in FAC paragraph 31), for a subtotal of $23,400.00.

21. The $23,400.00 figure is approximately one half of the lower bound of lost income I pleaded in the FAC at paragraph 31, which alleged "lost net commercial income of not less than approximately $46,800 to date, with continuing losses according to proof at trial." I have deliberately requested only a conservative fraction of the lost income I sustained, in recognition of the prove-up evidentiary posture and the absence of weekly settlement statements in my possession.

VII. RESCISSION, RESTITUTION, AND DECLARATORY RELIEF

22. I gave notice of rescission within the FAC itself, as permitted by Civil Code sections 1691 and 1693. The truck has been irrecoverably damaged by the underlying defect and the storage process. Restoration of the truck to its original condition is impossible and is therefore excused under Civil Code section 1693, and this Court is authorized to adjust the equities between the parties under that statute.

23. The $14,747.65 financed balance was originated through Dakota Financial LLC, which is not a party to this action. I do not seek in this Declaration a money judgment in the amount of the financed balance itself, because that obligation is between me and a non-party lender and recovering it from Diamond would risk a double recovery if I later resolve the financing separately.

24. I reserve the right, after entry of judgment, to seek a separate determination of any indemnification or further restitution remedy as to the financed balance if and as appropriate under Civil Code section 1693 and the Court's continuing equitable jurisdiction over the rescission count.

25. Specific Judgment Findings Requested. In addition to the monetary relief itemized in Sections IV through VIII of this Declaration, I respectfully request that the Court's Judgment include the following findings and declarations. Each falls squarely within the scope of the FAC's Seventh Cause of Action (Rescission and Restitution) and Eighth Cause of Action (Declaratory Relief), and each is supported by well-pleaded allegations of the FAC that are deemed admitted by Diamond's default: (a) That the April 4, 2023 purchase transaction between Plaintiff and Diamond Truck Sales, Inc. -- including the Retail Buyer's Order (Exh. 1) and the GAP Addendum (Exh. 3) -- is rescinded pursuant to Civil Code section 1689, subdivision (b), and is of no further force or effect as between Plaintiff and Diamond, so that Diamond may not enforce any term of, or claim any continuing benefit under, that transaction. (b) That Diamond's conduct in connection with the sale of the subject truck constituted unlawful, unfair, and fraudulent business acts and practices within the meaning of California Business and Professions Code section 17200 et seq., as pleaded in the FAC's Sixth Cause of Action.

VIII. PREJUDGMENT INTEREST

26. The documented out-of-pocket losses set forth in Section IV are liquidated and certain, or capable of being made certain by calculation, and the right to recover them vested on the dates each charge was incurred. I am therefore entitled to prejudgment interest on those amounts at the legal rate of seven percent (7%) per annum (Cal. Const., art. XV, section 1) from the date of loss to the date of judgment, pursuant to Civil Code section 3287, subdivision (a). (See *North Oakland Medical Clinic v. Rogers* (1998) 65 Cal.App.4th 824, 828-830.)

27. For purposes of this prove-up I have computed prejudgment interest using a single, conservative weighted-average start date of June 1, 2023 (the approximate midpoint of the dates on which the documented charges in Section IV were incurred, from April 4, 2023 through June 23, 2023), applied to the $20,218.65 documented out-of-pocket subtotal through June 15, 2026: $20,218.65 x 7% x approximately 3.04 years (06/01/2023 to 06/15/2026) = $4,302.55. I treat that $4,302.55 figure as a conservative fixed amount through June 15, 2026 and do not seek additional prejudgment interest for the period after that date in this request.

28. I have not sought prejudgment interest on the lost-income component in Section VI, because lost income is not liquidated within the meaning of Civil Code section 3287, subdivision (a).

IX. COSTS

29. Plaintiff has an approved court fee waiver in this action. Consistent with CIV-100 item 7f, Plaintiff waives costs and disbursements in connection with this request for court judgment. No Memorandum of Costs (Form MC-010) is submitted, and no costs amount is included in the judgment total requested below.

X. SUMMARY OF JUDGMENT REQUESTED

30. Based on the foregoing, I respectfully request entry of Default Judgment by the Court against Defendant Diamond Truck Sales, Inc. in the compensatory amount of $53,671.20, with costs waived, together with the non-monetary findings and declarations specified in Section VII above. Plaintiff does not seek punitive damages in this filing. The components of the requested judgment are as follows:

$20,218.65 Documented out-of-pocket losses (Section IV; Exhs. 1-3, 6-9)

$5,750.00 Undocumented out-of-pocket, by sworn testimony (Section V; Exhs. 8, 10)

$23,400.00 Lost commercial income, conservative (Section VI; Exhs. 4-5)

$4,302.55 Prejudgment interest through 06/15/2026 (Section VIII)

$53,671.20 TOTAL MONETARY JUDGMENT REQUESTED

$0.00 Costs of suit (Section IX; waived on CIV-100 item 7f)

31. The amounts requested are within the scope of the prayer for relief in the FAC and do not exceed the dollar-amount notice given to Diamond by the body of the FAC, as required by Code of Civil Procedure section 580 and *Greenup v. Rodman* (1986) 42 Cal.3d 822. Specifically: the out-of-pocket itemization in FAC paragraph 29 totals $25,129.44 (covering items (a) through (g) of that paragraph), and FAC paragraph 31 pleads lost commercial income "of not less than approximately $46,800 to date, with continuing losses" -- both substantially exceeding the conservative figures I request here.

32. To the extent any of the figures stated in this Declaration differ from the preliminary estimates pleaded in the FAC, this Declaration provides the more precise and current calculation based on the documentary records and sworn testimony assembled for prove-up. I seek only those amounts that are supported by the attached exhibits or by sworn testimony based on personal knowledge, and the conservative figures in Sections IV through VIII of this Declaration are at or below the amounts pleaded in the FAC.

XI. INDEX OF EXHIBITS

Exhibit 1. Retail Buyer's Order dated April 4, 2023 (Diamond Truck Sales, Inc.; Customer: Brendan Ngwa Nforbi; Vehicle: 2014 Volvo VNL, VIN 4V4NC9EH6EN142206).

Exhibit 2. California Department of Motor Vehicles "Generated Fees" printout dated May 8, 2023, reflecting Total Fees Due of $3,442.00, together with the corresponding DMV Report of Deposit of Fees and Application materials.

Exhibit 3. GAP Addendum dated May 4, 2023, reflecting the $1,895.00 GAP enrollment charge.

Exhibit 4. Lease-On Owner Operator Agreement between Gobbato Builders, LLC (MC #1357325) and Altamont Freight LLC, effective April 27, 2023, identifying VIN 4V4NC9EH6EN142206.

Exhibit 5. Amazon Relay -- Driver Setup verification, dated April 27, 2023 9:22 AM PDT (digital verification code Y5RG-48F-25NG-P74W).

Exhibit 6. Brannon Tire invoice dated April 28, 2023, in the amount of $1,197.34.

Exhibit 7. Mobile Will's Truck/Auto Repair Shop invoice dated May 21, 2023, in the amount of $740.00.

Exhibit 8. Golden Empire Towing, Inc. invoice dated May 26, 2023, in the amount of $562.50.

Exhibit 9. Western Truck Center invoice dated June 23, 2023, in the amount of $36.71.

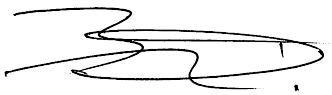
Exhibit 10. Notice of Stored Vehicle issued under California Vehicle Code section 22852, dated May 23, 2023, by Commercial Towing, 2609 Texas Street, Bakersfield, California.

XII. EXECUTION

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 4, 2026,

at Stockton, California.



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

EXHIBIT

1

Retail Buyer's Order

Dated April 4, 2023 | Diamond Truck Sales, Inc.
Customer: Brendan Ngwa Nforbi
Vehicle: 2014 Volvo VNL, VIN 4V4NC9EH6EN142206

DocuSign Envelope ID: 66E15AC4-617C-4DBE-8E5D-9F622DFF00FC

DocuSign Envelope ID: 7CB6491D-0E59-4287-A16C-6AC3D80F423C

RETAIL BUYERS ORDER

DEALERSHIP NAME Diamond Truck Sales Inc TX

ADDRESS 5201 Bridge St Fort Worth TX 76103

CUSTOMER NAME Brendan Ngwa Nforbi

STREET ADDRESS 1455 Cat Tail Drive

CITY Stockton COUNTY San Joaquin STATE CA ZIP 95204 SALESPERSON Elizabeth Altizer

I AGREE TO PURCHASE THE BELOW LISTED USED VEHICLE:

YEAR	MAKE	MODEL	BODY TYPE	COLOR	TRIM
2014	Volvo	VNL	CONVENTIONAL C	Red	-
VIN	4V4NC9EH6EN142206		TO BE DELIVERED ON OR ABOUT	04/04/2023	STOCK NO. F01278

REMARKS:	CASH PRICE OF VEHICLE	$26,900.00
N/A	N/A	0.00
N/A		0.00
N/A		0.00
N/A	N/A	0.00
N/A	N/A	0.00
N/A	N/A	0.00
N/A	N/A	0.00
	N/A	0.00
	N/A	0.00
	N/A	0.00
	N/A	0.00
	N/A	0.00

DEPOSIT RECEIPT:
Dealer hereby acknowledges receipt of the sum of $ 12345.1 as a Deposit/Partial Payment for the vehicle described above. If this Receipt is for a Deposit, Dealer will refrain from selling the described vehicle for 30 days. this Deposit/Partial Payment ☐ IS ☒ IS NOT refundable, subject to the following conditions:
Subject to Approval of Financing

		DOCUMENT FEES →	150.00
TRADE-IN AND OTHER CREDITS	27,050.00	← SELLING PRICE →	27,050.00
TRADE-IN ALLOWANCE 0.00	0.00	x 0.00 = SALES TAX	0.00
BALANCE OWED ON TRADE 0.00	TAXABLE TOTAL 7050.0000	COUNTY	
BALANCE OWED TO:	ODOMETER MILEAGE STATEMENT 2014 Volvo VNL	TITLE & FILING FEES	5.00
NET EQUITY 0.00	THE ODOMETER OF THE ABOVE DESCRIBED VEHICLE NOW READS	OTHER	
DEPOSIT 12,345.10	Exempt MILES/KILOMETERS.	Other Fees	37.75
CASH ON DELIVERY 0.00	AND IS ACCURATE UNLESS CHECKED BELOW	Other Products	0.00
OTHER 0.00	ODOMETER MILEAGE IS NOT ACCURATE REFER TO THE FEDERAL MILEAGE STATEMENT FOR FULL	TOTAL	27,092.75
TOTAL CREDITS 12,345.10	→	TOTAL CREDITS	12,345.10
TRADE-IN STOCK NO. YEAR MAKE MODEL		BALANCE DUE	14,747.65
BODY TYUPE VIN MILEAGE			

ALL WARRANTIES, IF ANY, BY A MANUFACTURER OR SUPPLIER OTHER THAN DEALER ARE THEIRS, NOT DEALER, AND ONLY SUCH MANUFACTURER OR OTHER SUPPLIER SHALL BE LIABLE FOR PERFORMANCE UNDER SUCH WARRANTIES. UNLESS DEALER FURNISHES BUYER WITH A SEPARATE WRITTEN WARRANTY MADE BY DEALER ON ITS OWN BEHALF, DEALER HEREBY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE ON ALL GOODS AND SERVICES SOLD BY DEALER. IN THE EVENT THAT A SERVICE CONTRACT IS SOLD BY DEALER ON IT'S OWN BEHALF, ANY IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE IN LIMITED IN DURATION TO THE TERM OF THE SERVICE CONTRACT.

Used Car Buyers Guide. The information you see on the window form for this vehicle is part of this contract. Information on the window form overrides any contrary provisions in the contract of sale. Spanish Translation: Guía para compradores de vehículos usados. La información que ve en el formulario de la ventanilla para este vehículo forma parte del presente contrato. La información del formulario de la ventanilla deja sin efecto todo disposición en contrario contenida en el contrato de venta.

The front and back of this agreement and any documents attached hereto comprise th entire agreement affecting this purchase and no other agreement or understanding of any nature concerning same has been made or entered into, or will be recognized. I hereby certify that no credit has been extended to me for the purchase of this motor vehicle except as it appears in writting on the face of this agreement. I have read the matter printed on the back hereof and agree to it as a part of this order the same as if it were printed above my signature. I certify that I am at least 18 years old, and hereby acknowledge receipt of a copy of this Agreement.

APPROVED: McKenna Morley
AUTHORIZED DEALERSHIP REPRESENTATIVE

SIGNED: DocuSigned by: Brendan Ngwa Nforbi
9C28DC2888A34EE...
ACCEPTED BY CUSTOMER

THIS ORDER IS NOT VALID UNLESS SIGNED AND ACCEPTED BY DEALER OR ITS AUTHORIZED REPRESENTATIVE

DocuSign Envelope ID: 66E15AC4-617C-4DBE-8E5D-9F622DFF00FC

01-339 (Back)
(Rev.4-13/8)

Texas Sales and Use Tax Exemption Certification

This certificate does not require a number to be valid.

Name of purchaser, firm or agency	
Brendan Ngwa Nforbi	(775) 683-7112
Address *(Street & number, P.O. Box or Route number)*	Phone *(Area code and number)*
1455 Cat Tail Drive	
City, State, ZIP code	
Stockton CA 95204	

I, the purchaser named above, claim an exemption from payment of sales and use taxes (for the purchase of taxable items described below or on the attached order or invoice) from:

Seller: Diamond Truck Sales Inc TX

Street address: 5201 Bridge St City, State, ZIP code: Fort Worth TX 76103

Description of items to be purchased or on the attached order or invoice:

2014 VOLVO VNL 64T630, VIN: 4V4NC9EH6EN142206, COLOR: RED, STOCK NO.: F01278

Purchaser claims this exemption for the following reason:

IRP registration. This purchase is being made for use in interstate commerce as a semi-truck for freight delivery services. The vehicle will be used exclusively for interstate commerce and will not be used in California for intrastate commerce. Therefore, the purchase is exempt from Texas state and sales use tax under Texas Tax Code Section 151.316(a)(1) and 151.318(a)(1)(A).

I understand that I will be liable for payment of all state and local sales or use taxes which may become due for failure to comply with the provisions of the Tax Code and/or all applicable law.

I understand that it is a criminal offense to give an exemption certificate to the seller for taxable items that I know, at the time of purchase, will be used in a manner other than that expressed in this certificate, and depending on the amount of tax evaded, the offense may range from a Class C misdemeanor to a felony of the second degree.

Purchaser sign here	Title	Date
DocuSigned by: Brendan Ngwa Nforbi 9C24DF2968A34EE...		04/04/2023

NOTE: This certificate cannot be issued for the purchase, lease, or rental of a motor vehicle.

THIS CERTIFICATE DOES NOT REQUIRE A NUMBER TO BE VALID.

Sales and Use Tax "Exemption Numbers" or "Tax Exempt" Numbers do not exist.

This certificate should be furnished to the supplier.
Do not send the completed certificate to the Comptroller of Public Accounts.

CDTFA-106 (FRONT) REV. 22 (5-22)

VEHICLE/VESSEL USE TAX CLEARANCE REQUEST

STATE OF CALIFORNIA
CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

CURRENT OWNER INFORMATION *(as it will appear on the registration)*

NAME
BRENDAN NGEHSI NGWA NFORBI

IDENTIFICATION NUMBER *(driver license number, EIN number)*	TELEPHONE NUMBER	EMAIL ADDRESS
F7953179	(775) 683-7112	brendan@altamontfreight.com

ADDRESS *(street, city, state, ZIP Code)*
1455 CAT TAIL DRIVE, STOCKTON, CA 95204

DATE YOU APPLIED FOR CALIFORNIA REGISTRATION	DATE YOU BECAME A RESIDENT OF CALIFORNIA	DATE EMPLOYED IN CALIFORNIA
05/08/2023	05/10/2021	02/15/2022

FORMER OWNER INFORMATION

NAME OF SELLER OR TRANSFEROR	TELEPHONE NUMBER	EMAIL ADDRESS
DIAMOND TRUCK SALES	(817) 372-4622	mmorley@diamondtrucksalesinc.com

ADDRESS *(street, city, state, ZIP Code)*
5201 BRIDGE ST, FORT WORTH, TX 76103

PROPERTY INFORMATION

✓ Vehicle ☐ Vessel ☐ Mobilehome

LICENSE PLATE/CF/SERIAL NUMBER(S)	VIN/HIN/SERIAL NUMBER(S)	MAKE	YEAR
9E18853	4V4NC9EH6EN142206	VOLVO	2014

LOCATION OF PURCHASE/TRANSFER	DATE VEHICLE/VESSEL ENTERED CALIFORNIA	PURCHASE OR TRANSFER DATE	PURCHASE PRICE
TURLOCK, CA	UNKNOWN	05/04/2023	$26,900

WAS VEHICLE/VESSEL PREVIOUSLY REGISTERED TO YOU OUTSIDE THE STATE OF CALIFORNIA? IF YES, WHERE?
NO

FOR MOBILEHOMES ONLY:	MODEL	MOBILEHOME MANUFACTURER	YEAR	SIZE

IF APPROVED, MY CERTIFICATE SHOULD BE:	HELD FOR PICKUP *(for office locations see back of this form or visit www.cdtfa.ca.gov)*	OFFICE LOCATION	MAILED *(to the above address)*
	✓	OAKLAND, CA	☐

I hereby request a Certificate of Use Tax Clearance to allow completion of registration at DMV/HCD without payment of the California use tax for the following reason:

The semi truck vehicle was purchased outside of California and will be used exclusively for interstate freight delivery services. As such, it is not subject to California's use tax which only applies to intrastate use. The relevant tax code cited is California Revenue and Taxation Code Section 6245, which exempts vehicles used exclusively in interstate commerce from California's use tax.

I have attached several documents that support my request, including a signed Lease-On Agreement and a Truck Lease Contract with Gobbato Builders, LLC, and additional documentation that demonstrates my intent to use the vehicle for interstate commerce, including delivery orders from the Amazon Relay load board.

I understand the importance of complying with California tax laws and the responsibility of all taxpayers to pay their fair share. However, I believe that this request is fully compliant with California law and reflects a standard process for out-of-state purchasers using their vehicles exclusively for interstate commerce.

I hope that the CDTFA will recognize the legitimacy of my request and approve the Certificate of Use Tax Clearance. This would enable me to complete the registration process at DMV/HCD without paying unnecessary use tax on this vehicle. Thank you for your consideration and attention to this matter.

I hereby certify that the above statements, to the best of my knowledge and belief, are true and correct.

SIGNATURE	DATE
	05/08/2023

Please refer to California Department of Tax and Fee Administration (CDTFA) publication 52, *Vehicles and Vessels: Use Tax*, available at *www.cdtfa.ca.gov*, for information about the required documentation to submit with this request. Additional information is available on our website at *www.cdtfa.ca.gov/industry/vehicles-vessels-aircraft-guide.htm*. Take or mail all required form(s) and documents to one of the CDTFA offices listed on page 2 of this form or visit *www.cdtfa.ca.gov* for participating locations.

CLEAR PRINT

BUYER'S TAG RECEIPT - BUYER'S COPY

Tag Number:	3093V28	Date of Sale:	MAY 04, 2023
		Expiration Date:	JUL 03, 2023
Issue Date:	May 04, 2023		
VIN:	4V4NC9EH6EN142206		
Year:	2014	Body Style:	TR
Make:	VOLV	Model:	VNL
Major Color:	RED	Minor Color:	

Remarks:
DIESEL

Issuing Dealer: DIAMOND TRUCK SALES INC.
Dealer Number: P166091

Purchaser
Name 1: BRENDAN NFORBI
Address: 1455 CAT TAIL DRIVE
STOCKTON, CA
95204

BUYER is required to keep this receipt in the vehicle until vehicle is registered and metal plates are placed on the vehicle.

BUYER'S COPY

Dakota Financial, LLC
11766 Wilshire Blvd.
Suite 550
Los Angeles, CA 90025

POWER OF ATTORNEY

Motor Vehicle Titling, Licensing and Registration

Brendan Ngehsi Ngwa Nforbi ("Principal") does hereby authorize and irrevocably appoint Dakota Financial, LLC ("Agent"), or any officer, employee (Chris Park, Brian Babetto, Heith Harris, Charles Park, Irene Rodridguez) or designee of agent, as the true lawful attorney-in-fact and agent of Principal for the sole purpose of executing in the name of and for Principal (i) any assignment of a certificate of title or certificate of ownership for the purpose of transferring and/or releasing any or all of Principal's interest in and to all commercial and non-commercial vehicles, (ii) to sign all papers and documents relating to the application for or renewal of licensing and/or registration; and (iii) any other document relating to the application of titles, vehicle title lien applications, lien releases, vehicles licenses, transfers, registrations, or license and registration renewals with respect to all commercial and non-commercial vehicles, and otherwise to perform any act on behalf of the principal relating to the matters set forth above. The authority herein shall include such incidental acts as are reasonable to carry out and perform the specific authorities granted herein.

My attorney-in-fact agrees to accept this appointment subject to its terms, and agrees to act and perform in said fiduciary capacity consistent with my best interest as my attorney-in-fact in its discretion deems advisable.

Principal agrees to hold harmless Dakota Financial, LLC and any of its employees from any responsibility for the issuance or renewal of any title, license or registration to any commercial or non-commercial vehicle at the direction to the Agent.

Vehicle Description: 2014 Volvo VNL64T630 , Vin #: 4V4NC9EH6EN142206

Brendan Ngehsi Ngwa Nforbi

By: _____ **Date:** 04/07/2023

Signature

State of California
County of San Joaquin
On April 7, 2023 day before me, America Kimberly Andrade, Notary Public
Notary Printed Name and Title

Personally appeared Brendan Ngehsi Ngwa Nforbi, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/~~she/they~~ executed the same in his/~~her/their~~ authorized capacity(ies), and that by his/~~her/their~~ signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed this instrument. **I certify under PENALTY OF PERJURY under the laws of the State of** California **that the foregoing paragraph is true and correct.**

WITNESS my hand and official seal. America Andrade

AMERICA KIMBERLY ANDRADE
COMM # 2412088
SAN JOAQUIN County
California Notary Public
Comm Exp Aug. 1, 2026

VEHICLE OWNER(S):

Owner's Name: Brendan Ngwa Nforbi Co-owner's Name _____

Owner's Address: 1455 Cat Tail Drive Stockton, CA 95204 Co-owner's Address: _____

POWER OF ATTORNEY GRANTED TO:

Diamond Truck Sales Inc., and it's respective employees (Kristin Lee Motts, Todd Parker, Glenn Gallas, Maria Flores, Nesar Zadran, Jackie Sanchez, Shadie Alcaraz, Cody Thompson, Austin Oquin, Isaiah Watson, McKenna Morley).

Address: 480 Peachoid Road, Gaffney, SC 29341
1201 South Soderquist Road, Turlock, CA 95380
7156 Goldenstate Highway, Bakersfield, CA 93308
5201 Bridge Street, Fort Worth, TX 76103

VEHICLE INFORMATION

Year: 2014 Make: Volvo Model: VNL Body: DS

VIN Number: 4V4NC9EH6EN142206

I/We, being the owner(s) of the motor vehicle described above, by these presents do make, constitute, and appoint the person named above true and lawful attorney-in-fact to sign in my/our name, place, and stead any Certificate of Title, or other supporting papers, covering said motor vehicle, in whatever manner necessary to register and/or transfer ownership of said motor vehicle; and I/we do hereby grant unto said attorney-in fact full authority and power to do and perform any and all other acts necessary or incidents to the execution of the powers herein expressly granted, as the grantor might or could do if personally present, with full power of substitution. I/We further certify and affirm that all information presented in this form is true and correct, that any documents I/we have presented to DMV are genuine, and that the information included in all supporting documentation is true and accurate. I/We make this certification and affirmation under penalty of perjury, and I/we understand that knowingly making a false statement or representation on this form is a criminal violation.

Owner Signature: _____ Date: 04/07/2023

Co-Owner Signature: _____ Date: _____

NOTARY PUBLIC

State of: California

County of: San Joaquin

Sworn to and subscribed before me on the 7 day of April, 2023

by Brendan Ngwa Nforbi.

Notary Public's Printed Name: America Kimberly Andrade Notary Public Seal

Notary Public's Signature: America Andrade

AMERICA KIMBERLY ANDRADE
COMM # 2412088
SAN JOAQUIN County
California Notary Public
Comm Exp Aug. 1, 2026

EXHIBIT

2

California DMV Generated Fees Printout

Dated May 8, 2023 | Total Fees Due: $3,442.00
Includes DMV Report of Deposit of Fees
and Application Materials

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

TO OBTAIN A TITLE OR REGISTRATION CARD, MAIL THE ATTACHED DOCUMENTS AND REQUESTED ITEMS TO: DMV, PO BOX 942869, SACRAMENTO, CA 94269-0001. PENALTIES ARE DUE IF RENEWAL FEES ARE PAID AFTER THE EXPIRATION DATE. PLANNED NON-OPERATION (PNO) REQUESTS MUST BE SUBMITTED WITHIN 90 DAYS OF THE EXPIRATION DATE (ON OR BEFORE THE EXPIRATION DATE FOR OFF-HIGHWAY VEHICLES) OR ALL FEES AND PENALTIES ARE DUE. FOR A DMV OFFICE APPOINTMENT, GO ONLINE AT WWW.DMV.CA.GOV OR CALL 1-800 777-0133.

Title or Reg 227 #25

CALIFORNIA OWNERSHIP CERTIFICATE OR APPLICATION FOR DUPLICATE WITH THE APPROPRIATE FEE.

* * *

BILL OF SALE FROM
ORIGINAL REGISTERED OWNER
TO
DIAMOND TRUCK SALES INC

USE TAX IS DUE UNLESS AN EXEMPTION IS RECEIVED. CONTACT CDTFA.CA.GOV FOR TAX CLEARANCE

642 050823 14
0020 F00 31
9E18853 206

ADDITIONAL FEE OF $3442.00 IS DUE FOR COMPLETION OF TRANSFER

Penalties will accrue as of 6/4/23. DMV

REPORT OF DEPOSIT OF FEES
PAGE 1 OF 1



STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

*** INCOMPLETE APPLICATION**SEE ABOVE**THIS IS NOT AN OPERATING PERMIT ***

MAKE	YR MODEL	YR 1ST SOLD	VLF CLASS	*YR	TYPE VEH	TYPE LIC	LICENSE NUMBER
VOLV	2014	0000	HD	2023	37G	31	9E18853

BODY TYPE MODEL	MP	MO	AX	WC	UNLADEN/G/CGW	VEHICLE/VESSEL ID NUMBER
DS	D	EE	3	F	40000	4V4NC9EH6EN142206

TYPE VEHICLE/VESSEL USE	DATE ISSUED	CC/ALCO	DT FEE RECVD	PIC	USE TAX
COMMERCIAL	05/08/23	39	05/08/23	0	2421

RDF REASONS: 3 A Z 4

NGWANFORBI BRENDAN NGEHSI
R 1455 CAT TAIL DR
/
O
STOCKTON
CA 95204

DAKOTA FNCL LLC
L 11766 WILSHIRE BLVD 550
/
O
LOS ANGELES
CA 90025

AMOUNT PAID $NFEE

AMOUNT DUE 3442.00

AMOUNT RECVD
CASH :
CHCK :
CRDT :
ADJUST-UNDER : 3442.00

PR EXP DATE: 03/31/2023

642 14 0000000 0020 CS 050823 9E18853 206

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

A Public Service Agency

00 LM5 P PCVS 64212814 19 0 050823 1438 VDA

*** G E N E R A T E D F E E S ***

01	CVRA CURR WF	611.00	16	31	
02	CVRA WF PEN	367.00	17	32	
03	CVRA WGT DCL	3.00	18	33	
04	TRANSFER	15.00	19	34	
05	USE TAX	2085.00	20	35	
06	CITY USE TAX	336.00	21	36	
07	PYR SERV FEE	25.00	22	37	
08			23	38	
09			24	39	
10			25	40	
11			26	41	
12			27	42	
13			28	43	
14			29	44	
15			30	TOTAL FEES DUE:	3442.00

FEE #- $AMT- REASON- PASSWORD- CURR EXP DATE: 03/31/23

FR- R30- VESSEL TAX BYPASS- NEW EXP DATE: 12/31/23

VIN 4V4NC9EH6EN142206

ENTER WAIVER-PF1 NO RENEWAL-PF2 KEY FEES-PF3 FALLBACK RESTART CANCEL

2.8.0.4

EXHIBIT

3

GAP Addendum

Dated May 4, 2023
GAP Enrollment Charge: $1,895.00

TRK115-

GAP DEFICIENCY WAIVER ADDENDUM

Commercial Heavy Truck (16,001 and greater GVWR) or Commercial Trailer

Financing Type: ☒ Installment Sales Contract/Loan ☐ Balloon Loan ☐ Lease

PROTECTED VEHICLE INFORMATION

M.S.R.P. 16,888.87	Original Contract Date: 5/4/2023	Term (Months): 36	APR%: N/A
Year: 2014	Make: VOLVO	Model: VN	Mileage: 882,500
VIN#: 4V4NC9EH6EN142206		Amount Financed/ Capitalized: $16,888.87	☐ New ☒ Used

DEALER/SELLER INFORMATION

Name: Diamond Truck Sales, Inc. - Turlock	Fax:	Phone: (888) 417-2507
Address: 1201 So Soderquist Rd		Dealer # 753124
City: TURLOCK	State: CA	Zip: 95380

ENROLLMENT CHARGE $ 1,895.00

CREDITOR/ASSIGNEE/LESSOR INFORMATION

Name: DAKOTA FINANCIAL LLC	Fax:	Phone: (310) 696-3030
Address: 11766 Wilshire Blvd Suite 550		Finance Agreement # 203954
City: LOS ANGELES	State: CA	Zip: 90025

PURCHASER/CUSTOMER/LESSEE INFORMATION

Last Name: Brendan Ngwa Nforbi	First Name:	Middle Initial:	Phone: (775) 683-7112
Address: 1455 Cat Tail Drive			
City: STOCKTON	State: CA		Zip: 95204

This GAP Deficiency Waiver Addendum, which is effective as of the inception date above, amends the **FINANCING CONTRACT**. This Addendum is between the **PURCHASER/CUSTOMER/LESSEE** shown above (**You** or **Your**) and the **DEALER/SELLER** shown above (**We, Us, or Our**) or if the **FINANCING CONTRACT** is assigned to another party, the **ASSIGNEE**.

In the event of a **CONSTRUCTIVE TOTAL LOSS** or **UNRECOVERED THEFT** to the **PROTECTED VEHICLE**, **We** agree to waive **Our** rights against **You** for an amount subject to the **LIMITS OF LIABILITY** on the reverse side, and the terms, conditions, and exclusions hereof. **You** will remain responsible for payment of any items stated under **EXCLUSIONS** that remain unpaid in the **FINANCING CONTRACT**. **You** should carefully read this Addendum in its entirety for additional information on eligibility, requirements, conditions, and exclusions that could prevent **You** from receiving benefits under this Addendum.

Although not required to do so, **You** elect to purchase this Addendum for an additional charge which is shown above. **You** may as an alternative to purchasing this Addendum, be able to purchase a similar product from a company of **Your** choice. **This GAP Program is not insurance, does not take the place of insurance on the PROTECTED VEHICLE, and does not afford collision, comprehensive, or any other form of automobile insurance coverage.** **You** are responsible for all communications with **Your** Primary Carrier, including notice and claims.

☐ **YES, I elect the Deficiency Waiver Addendum**

By **Your** signature below, **You** acknowledge **You** have read and understand this Addendum in its entirety, and that no other verbal representations have been made to **You** that differ from these written provisions. **YOU** ACKNOWLEDGE AND AGREE THAT **YOUR** ACCEPTANCE OF THIS ADDENDUM IS VOLUNTARY AND IS NOT REQUIRED IN ORDER FOR **YOU** TO OBTAIN CREDIT, DOES NOT IMPACT THE CREDIT TERMS, AND HAS NO EFFECT ON THE TERMS OF THE RELATED SALE OF THE **PROTECTED VEHICLE.**

Purchaser/Customer/Lessee Signature: _____ Date: 5/4/23

Dealer/Seller Signature: Warren Cox Date: 5/4/23

☐ **DECLINATION OF DEFICIENCY WAIVER ADDENDUM**

I do not choose to purchase the Deficiency Waiver Addendum. I understand that by not accepting the Deficiency Waiver Addendum I am not entitled to any of the benefits in the event of a Total Loss of the vehicle.

Purchaser/Customer/Lessee Signature: _____ Date: _____

Administrator: Comprehensive Auto Resources Company, Inc. PO Box 1268, Exton, PA 19341 877-902-8790

TRK115 WHITE- Purchaser/Customer/Lessee YELLOW- Administrator PINK- Creditor/Assignee/Lessor GOLD – Dealer/Seller

Rev. 07/15

PROGRAM LIMITS

Max. % of Vehicle Value at Loan/Lease:	Max. Financing Term:	Max. Financing Contract Amount:	Max. Limit of Liability:	Max. Deductible Buyback:
115% MSRP/NADA	84 Months for Loans & Leases	Unlimited	$50,000	$1,000

LIMITATIONS–THIS IS ONLY A PARTIAL LIST. YOU MUST READ THIS ENTIRE GAP ADDENDUM FOR ALL LIMITATIONS:

A. We will not waive the portion of the **UNPAID NET BALANCE** that results from the original **FINANCING CONTRACT** amount exceeding the Max. % of Vehicle Value at Loan/Lease stated above at the inception date of this Addendum.
B. The amount waived for **FINANCING CONTRACTS** with terms greater than the Maximum Financing Contract Term stated above will be based on a net payoff calculated using the Maximum Financing Contract Term stated on above.
C. Any Addendum issued for a term or an amount financed in excess of A or B above will be deemed eligible for enrollment as limited by this section.
D. **FINANCING CONTRACTS** that do not have uniform monthly repayment terms for the full period of the **FINANCING CONTRACT** are subject to the provisions of Condition B on page three of this form.

TERMINATION OF ADDENDUM

This Addendum will terminate on the date that any of the following events occur:

A. The date **Your FINANCING CONTRACT** is scheduled to terminate;
B. In the event that the **FINANCING CONTRACT** is terminated prior to its maturity date;
C. In the event that a **PROTECTED VEHICLE** is sold, assigned, or transferred by **You** before the expiration date of the **FINANCING CONTRACT**;
D. Expiration of any redemption period following the repossession or surrender of the **PROTECTED VEHICLE**; or
E. The date the **FINANCING CONTRACT** is prepaid or the **FINANCING CONTRACT** is refinanced.

RIGHT TO CANCEL

You have the unconditional right to cancel this Addendum at any time. If the Addendum is cancelled within thirty (30) days of the Addendum purchase, **You** will receive a full refund/credit of the Addendum cost, provided no loss has occurred. After thirty (30) days, and provided no loss has occurred, the refund/credit will be calculated on the basis of a Pro Rata refund method (unless other state regulatory methods apply), less a $50.00 cancellation fee, where such a fee is permitted by law. **We** will apply all refund proceeds to any remaining balance. **It is Your responsibility to notify the GAP Administrator shown on page one, in writing, of Your request to cancel this Addendum and request a refund/credit of the GAP charges. If You do not receive the refund/credit within 60 days of notice of cancellation/termination, contact the GAP Administrator shown on page one.**

LIMITS OF LIABILITY

The amount **We** will waive under this Addendum shall not exceed the lesser of:

A. The amount shown as the Maximum Limit of Liability above; or
B. If the collateral is protected by a **PRIMARY CARRIER**; the amount obtained by subtracting the primary insurance settlement, including any amount that the primary deductible exceeds the Max. Deductible Buyback reflected above , from the **UNPAID NET BALANCE**. If a portion of the **PROTECTED VEHICLE** is not covered by a **PRIMARY CARRIER**, the **ACTUAL CASH VALUE AT LOSS** of that portion, and the amount of any unrepaired prior damage or the value of any retained salvage, shall be added to the primary insurance settlement. The total will then be subtracted from the **UNPAID NET BALANCE**; or
C. If the **PROTECTED VEHICLE** is not protected by a **PRIMARY CARRIER**; the amount obtained by subtracting the **ACTUAL CASH VALUE AT LOSS** of the **PROTECTED VEHICLE**, reduced by the amount of any prior damage or retained salvage, from the **UNPAID NET BALANCE**.

DEFINITIONS

A. **ACTUAL CASH VALUE AT LOSS:** The retail value of the **PROTECTED VEHICLE** or any portion thereof with appropriate adjustments for mileage, optional equipment, or unrepaired prior damage. The retail value will be determined from the current, at **DATE OF LOSS**, NADA Commercial Truck Guide or National Automobile Dealers Association guide.
B. **CONSTRUCTIVE TOTAL LOSS:** A loss where the cost to repair or replace the **PROTECTED VEHICLE**, plus its salvage value, would exceed the **ACTUAL CASH VALUE AT LOSS**.
C. **DATE OF LOSS:** The date on which the actual physical damage or **UNRECOVERED THEFT** occurs. If such date is indeterminable, the **DATE OF LOSS** shall be the date the **PRIMARY CARRIER** makes settlement and payment to **You**.
D. **DELINQUENT PAYMENT:** Any payment, as described in the **FINANCING CONTRACT**, which remains unpaid after the date stated in the **FINANCING CONTRACT**. **DELINQUENT PAYMENTS** will also include any late charges or interest that have accrued due to past due **FINANCING CONTRACT** payments.
E. **FINANCING CONTRACT/LOAN/LEASE:** The contract which represents the financing agreement between **You** and **Us** for the purchase or lease of the **PROTECTED VEHICLE**, and which sets forth the terms, conditions, inception date, and expiration date of the financing agreement.
F. **PRIMARY CARRIER:** The insurance company that: 1) is secured by **You** to provide physical damage coverage, as required in the **FINANCING CONTRACT** on a **PROTECTED VEHICLE**, or 2) provides liability coverage to any person who has caused **Your** vehicle to incur a **CONSTRUCTIVE TOTAL LOSS** and for which that person is legally liable. Additionally, the **PRIMARY CARRIER** shall be any other coverage **You** may have protecting **Your** interest in the **PROTECTED VEHICLE**, contingent upon the failure or absence of **Your** coverage.
G. **PROTECTED VEHICLE:** The vehicle shown on page one, which must be a heavy truck greater than 16,001 GVWR, Type A, B, C, D, or E Tractor as reflected in NADA Official Commercial Truck Guide or a commercial trailer (which is covered by a **PRIMARY CARRIER**) which is not used to carry passengers for hire and is principally garaged and used in the United States. A new **PROTECTED VEHICLE** is one that is (1) of the current or immediately previous model year; (2) has less than 6,001 odometer miles at the time of purchase/lease; and (3) has not been previously titled. A used **PROTECTED VEHICLE** is one that is (1) older than the immediately previous model year, and/or (2) has more than 6,001 odometer miles at the time of purchase/lease, and/or (3) has been previously titled.
H. **UNPAID NET BALANCE:** The amount owed to **Us** by **You**, in accordance with the terms and conditions of the **FINANCING CONTRACT**, resulting from early termination of the **FINANCING CONTRACT**. This amount may not include any unearned interest; loan or lease charges; late charges; any **DELINQUENT PAYMENTS**; any uncollected service charges; refundable prepaid taxes or fees; or any other proceeds **You** may duly recover by canceling insurance coverages, service contracts or warranties; disposition fees, termination fees, penalty fees, or other items added to the initial **FINANCING CONTRACT** balance after the inception of the **FINANCING CONTRACT**. If two or more pieces of collateral are secured under a **FINANCING CONTRACT**, **We** will not waive more than the proportionate share of the total **UNPAID NET BALANCE** that the balance applicable to the **PROTECTED VEHICLE** represents to the total **FINANCING CONTRACT** balance. The **UNPAID NET BALANCE** also excludes loans or special finance offers which may waive or delay payment of principal or interest.
I. **UNRECOVERED THEFT:** A **PROTECTED VEHICLE** reported as stolen to both the police and the **PRIMARY CARRIER** who have made every effort, yet have failed to find and return the **PROTECTED VEHICLE**. A **PROTECTED VEHICLE** that is confiscated or improperly taken or secreted by **You**, where both **Your** and the **PROTECTED VEHICLE'S** whereabouts are not known shall not be deemed for the purposes of this Addendum as an **UNRECOVERED THEFT** loss.
J. **VEHICLE VALUE AT LOAN/LEASE:** The lesser of (1) the manufacturer's suggested retail price, (2) the selling price of the vehicle or (3) the vehicle's retail value from the current, at date of **LOAN** or **LEASE**, NADA Commercial Truck Guide or National Automobile Dealers Association (NADA) guide.

EXCLUSIONS

This Addendum does not cover loss or damage:

A. Occurring prior to the effective date of this Addendum.
B. In connection with a **FINANCING CONTRACT** written prior to the effective date of this Addendum.
C. Resulting directly or indirectly from any dishonest, fraudulent, criminal, or illegal act; or arising from an intentional act committed by **You**.
D. Due to, or resulting from, mechanical or electrical breakdown or failure.
E. Resulting from the vehicle being operated, used, or maintained in any race, speed contest or other contest.
F. If the vehicle was ever titled as a salvage or rebuilt vehicle.
G. For any amounts deducted from the **PRIMARY CARRIER's** settlement due to wear and tear, prior damage, unpaid insurance premiums, salvage, towing, storage, and other condition adjustments.
H. Attributable to other than the standard or optional equipment available from the manufacturer of the **PROTECTED VEHICLE**, including but not limited to: special carpeting, furniture, bars, audio, video or data equipment, cooking and sleeping facilities, customized paint, or any equipment installed to overcome a physical handicap. Factory approved conversion packages and dealer installed options usually included in used car value guidebooks are not excluded.
I. If **You:** (1) intentionally concealed or misrepresented any material fact; (2) engaged in fraudulent conduct; or (3) made a false statement in submitting a potential loss.
J. Due to the **UNRECOVERED THEFT**, fire, or vandalism of the vehicle, unless a police report has been filed.
K. If the loss is not reported within ninety (90) days of settlement with the **PRIMARY CARRIER** or, should there be no **PRIMARY CARRIER**, within ninety (90) days of the **DATE OF LOSS.**
L. Occurring after the expiration of any redemption period following the repossession or surrender of the **PROTECTED VEHICLE.**
M. To any equipment that is not covered by the **PRIMARY CARRIER.**
N. Occurring to a commercial trailer which is not covered by a **PRIMARY CARRIER.**

CONDITIONS

A. **ADDENDUM PERIOD, TERRITORY:** This Addendum shall be effective for the term reflected on page one, and will only cover losses that occur during the original **FINANCING CONTRACT** term of a **PROTECTED VEHICLE** in the United States, its territories and possessions, and Canada.
B. **FINANCING CONTRACTS WITH NON-UNIFORM PAYMENT TERMS:** If the first monthly payment is due more than forty-five (45) days after the date of the **FINANCING CONTRACT**, for the purpose of loss settlement, the **FINANCING CONTRACT** shall be amortized as if the first monthly payment were due in forty-five (45) days, using equal monthly payments, applying the lowest interest rate applicable at any time during the term of the **FINANCING CONTRACT.**
   1. Unless designated on page one as a **LEASE** or **BALLOON LOAN**, if the **FINANCING CONTRACT** is a **LEASE** or **LOAN** with a balloon payment at the end of the **FINANCING CONTRACT** term, for the purpose of loss settlement the **FINANCING CONTRACT** shall be amortized using the method below that results in the lower balance at the time of the **CONSTRUCTIVE TOTAL LOSS** or **UNRECOVERED THEFT**:
      a. The amortization schedule specified in the **FINANCING CONTRACT**, or
      b. Full amortization of the **FINANCING CONTRACT** to zero balance using equal monthly payments and the **FINANCING CONTRACT** interest rate over the **FINANCING CONTRACT's** original term.
   2. If designated as a **LEASE** or **BALLOON LOAN** on page one, for the purpose of loss settlement, the **LEASE** or **BALLOON LOAN** shall be amortized to the lesser of (a) the residual value or balloon amount stated in the **FINANCING CONTRACT** or (b) 30% of the **VEHICLE VALUE AT LOAN/LEASE.**
   3. All other **FINANCING CONTRACTs** with non-uniform payment terms shall be amortized on a simple interest basis over the stated **FINANCING CONTRACT** term using the lowest interest rate applicable at any time during the **FINANCING CONTRACT** term and equal monthly payments.
C. **MITIGATION OF LOSS: You** should do all things reasonable and practical to avoid or reduce any loss under this Addendum and to protect the **PROTECTED VEHICLE** from any further loss. **You** should also take reasonable measures to ensure that the maximum amount of actual cash value of a **PROTECTED VEHICLE** is paid by the **PRIMARY CARRIER.** Any loss due to **Your** failure to protect the vehicle or maximize settlement from the **PRIMARY CARRIER** shall not be recoverable under this Addendum.
D. **DECLARATIONS:** By accepting this Addendum, **You** acknowledge the agreements and representations in the Addendum and agree that this Addendum is issued based upon the truth of such representations.
E. **ASSIGNMENT:** This GAP Addendum will follow the **FINANCING CONTRACT** with no subrogation rights against the Purchaser/Customer/Lessee, if the **FINANCING CONTRACT** is sold or assigned by the **DEALER/SELLER.** This Addendum shall not be assigned, ceded, or transferred by **You.**

LOSS DOCUMENT REQUIREMEMTS

You shall report any potential loss to the Administrator within ninety (90) days of settlement with the **PRIMARY CARRIER** or, should there be no **PRIMARY CARRIER,** within ninety (90) days of the **DATE OF LOSS.** For each loss **You** must provide the following, and any other additional information **We** may request: 1) a copy of the primary insurance settlement worksheet and check; 2) verification of any other insurance or other recoverables (including sale of salvage); 3) verification of any other refundable amounts; 4) a copy of this GAP Addendum; 5) verification of the primary insurance deductible and the **DATE OF LOSS**; 6) a copy of the police report, in the case of an **UNRECOVERED THEFT**, fire, or vandalism; 7) details of the **FINANCING CONTRACT** including **Your** name and address, account number, amount borrowed, interest rate, payment amount, **FINANCING CONTRACT** history and calculation of **UNPAID NET BALANCE** amount, 8) a copy of the Bill of Sale (aka Buyer's Order, Purchase Agreement, etc.) as well as the manufacturer's invoice or window sticker (if the vehicle was purchased new), or a copy of the bookout sheet (if the vehicle was purchased used), and; 9) any additional reasonable documentation requested by the Administrator. No amount shall be waived by Us if the claim is not reported or if the documentation is not provided within the stated time period. All amounts waived as the result of this Addendum shall be applied to the **FINANCING CONTRACT** balance within thirty (30) days after satisfactory presentation and acceptance of all information listed above to the Administrator. Loss processing will not be made until **You** have recovered all amounts from any insurance or other indemnity which is valid and collectible and from any other recoverable or refundable source.

Administrator: Comprehensive Auto Resources Company, Inc. PO Box 1268, Exton, PA 19341 877-902-8790

STATE PROVISIONS

Georgia: **You** will have ninety (90) days after early termination of the **FINANCING CONTRACT** or GAP Addendum to notify the GAP Administrator and request a refund. Neither the extension of credit, the terms of the credit, nor the terms of the related sale in the case of a motor vehicle or other good or service are to be conditioned upon the purchase of a debt protection agreement.

Michigan: **Your** cost for this Addendum is separately stated from the Financing Contract in compliance with the Truth In Lending Act, 15 USC 1601 to 1667f, and the regulations promulgated under that act, 12 CFR, part 226.

Nebraska: This Addendum is not insurance and is not regulated by the Nebraska Department of Insurance. The benefits afforded under this Addendum do not take the place of insurance on the **PROTECTED VEHICLE.**

Tennessee: The cost of this Addendum is not regulated. **You** have the responsibility to determine whether the cost of this Addendum is reasonable in relation to the protection afforded by this Addendum. **You** will have ninety (90) days after early termination of the **FINANCING CONTRACT** or GAP Addendum to notify the GAP Administrator and request a refund. Neither the extension of credit, the terms of the credit, nor the terms of the related sale in the case of a motor vehicle or other good or service are to be conditioned upon the purchase of a debt protection agreement.

Utah: This Addendum is subject to limited regulation by the Utah Commissioner of Insurance. Any complaints regarding this Addendum may be submitted to the Utah Commissioner of Insurance.

EXHIBIT

4

Lease-On Owner Operator Agreement

Dated April 27, 2023
Between: Brendan Ngwa Nforbi and Gobbato Builders, LLC
(MC #1357325) / Altamont Freight LLC

LEASE-ON OWNER OPERATOR AGREEMENT

I. The Parties. This Agreement is made between a business entity known as Gobbato Builders, LLC with a physical address of 1011 S Pearl Expy, Dallas, Texas, 75201

AND

a business entity known as Altamont Freight LLC ("Lease-On Owner Operator").

WHEREAS Gobbato Builders, LLC intends to extend a seat on their MC authority #1357325 to Lease-On Owner Operator, effective 04/27/2023, under the following terms and conditions:

II. Services. The Owner Operator agrees to perform the following: Freight delivery services **and lease their equipment to Gobbato Builders, LLC on a per trip or term lease basis.** Hereinafter known as the "Services".

III. Payment. The Gobbato Builders agrees to pay for the Services performed by the Owner Operator.

The Owner Operator will receive an invoice statement and settlement every Friday based on prior week completed loads. Week begins on Sunday at 12:00am and ends on Saturday at 11:59pm.

The Owner Operators agrees to operate with their own 26ft box truck or Semi truck (Power Only) that has been well and frequently maintained and routinely inspected. ☐ **Box Ttuck** ☑ **Semi/Power Only**

VIN#: 4V4NC9EH6EN142206

Gobbato Builders will invoice Owner Operator for the selected services chosen by the Owner Operator based on the agreed fee schedule below:

BW 04/27/23 9:44 AM PDT

- ☑ • Lease-on to Gobbato Builder's authority 10% - self-dispatch
- ☐ • Dispatch 5% - Book high rate loads and offer coaching on business profitability
- ☐ • Factoring 2.9% - If you want to be paid daily or get fuel advances (40% of the assigned load)
- ☑ • Insurance - Submit to agent and pass down premium increase and/or down payment (if applicable) to the Owner Operator (direct number to Gobbato Builders insurance agent can be given upon request.)
- ☐ • One-on-One coaching – 2%

The Owner Operator agrees to maintain a Performance score above 97.5%, if Owner Operator fails below they will be considered for deactivation of their access to Amazon Relay. The Owner Operator performance scores are calculated by Amazon and will be provided to Owner Operator upon request which can be included with their weekly invoice statement.

IV. Due Date. The Services provided by the Gobbato Builders shall continue for an on-going basis with no end date and not due on a specific date but to be completed with a reasonable time-frame in accordance with industry standards.

BW

V. Expenses. The Owner Operator shall be responsible for all expenses related to providing the Services under this Agreement. This includes, but is not limited to, supplies, equipment, operating costs, business costs, employment costs, taxes, Social Security contributions / payments, disability insurance, unemployment taxes, and any other cost that may or may not be in connection with the Services provided Owner Operator.

Responsible expenses included but not limited to:

- Owner Operator Expenses Truck - Rent, Lease or Truck Note
- Trailer - Rent or Note
- Fuel and DEF Costs
- Vehicle Maintenance
- Driver Payroll (We do not pay your drivers, we pay your company)
- Commercial Insurance

VI. Independent Owner Operator Status. The Owner Operator, under the code of the Internal Revenue Service (IRS), is an independent Owner Operator and neither the Owner Operator nor the Owner Operator's employees or subcontract personnel are, or shall be deemed, the Gobbato Builders's employees.

In its capacity as an independent Owner Operator, Owner Operator agrees and represents:

Owner Operator has the right to perform Services for others during the term of this Agreement;

Owner Operator has the sole right to control and direct the means, manner, and method by which the Services required by this Agreement will be performed. Owner Operator shall select or approve the routes taken, approve starting and ending times and determine their own days of work;

Owner Operator has the right to hire assistants as subcontractors or to use their own employees

Neither Owner Operator, nor the Owner Operator's employees or personnel, shall be required to wear any uniforms provided by the Gobbato Builders;

The Services required by this Agreement shall be performed by the Owner Operator, Owner Operator's employees or personnel, and the Gobbato Builders will not hire, supervise, or pay assistants to help the Owner Operator;

Neither Owner Operator nor Owner Operator's employees or personnel shall receive any training from the Gobbato Builders pertaining to the professional driving skills necessary to perform the services required by this Agreement; and

Neither the Owner Operator nor Owner Operator's employees or personnel shall be required by the Gobbato Builders to devote full-time to the performance of the Services required by this Agreement.

VII. Business Licenses, Permits, and Certificates. The Owner Operator represents and warrants that all their employees and personnel associated shall comply with federal, state, and local laws requiring any required licenses, permits, and certificates necessary to perform the Services under this Agreement.

VIII. Federal and State Taxes. Under this Agreement, the Gobbato Builders shall not be responsible for:

BW 04/27/23

Withholding FICA, Medicare, Social Security, or any other federal or state withholding taxes from the Owner Operator's payments to employees or personnel or make payments on behalf of the Owner Operator;

Making federal or state unemployment compensation contributions on the Owner Operator's behalf; and

The payment of all taxes incurred related to or while performing the Services under this Agreement, including all applicable income taxes and, if the Owner Operator is not a corporation, all applicable self-employment taxes. Upon demand, the Owner Operator shall provide the Gobbato Builders with proof that such payments have been made. Gobbato Builders is not legally obligated to provide 1099 tax and/or end of year statements.

IX. Benefits of Owner Operator's Employees. The Owner Operator understands and agrees that they are solely responsible and liable for all benefits that are provided to their employees including, but not limited to, retirement plans, health insurance, vacation time-off, sick pay, personal leave, or any other benefit provided.

X. Unemployment Compensation. The Owner Operator shall be solely responsible for the unemployment compensation payments on behalf of their employees and personnel. The Owner Operator shall not be entitled to unemployment compensation in connection with the Services performed under this Agreement.

XI. Workers' Compensation. The Owner Operator shall be responsible for providing all workers' compensation insurance on behalf of their employees. If the Owner Operator hires employees to perform any work under this Agreement, the Owner Operator agrees to grant workers' compensation coverage to the extent required by law. Upon request by the Gobbato Builders, the Owner Operator must provide certificates proving workers' compensation insurance at any time during the performance of the Service.

XII. Insurance. The Owner Operator agrees to bear all responsibility for the actions related to themselves and their employees or personnel under this Agreement. In addition, the Owner Operator agrees to obtain comprehensive liability insurance coverage in case of bodily injury, personal injury, property damage, contractual liability, and cross-liability. The Owner Operator can obtain insurance under Gobbato Builders policy if the following conditions are met: run under Gobbato Builders MC authority, pay the premium increase and down payment if applicable, maintain a good MVR driving record. If the Owner Operator chooses to use their own insurance, it is agreed that they will operate under their own MC authority, their own Carrier account and/or add Gobbato Builders as the Certificate Holder.

XIII. Indemnification. The Owner Operator shall indemnify and hold the Gobbato Builders harmless from any loss or liability in and/or while performing the Services under this Agreement.

XIV. Termination of Agreement. This Agreement shall terminate upon written notice by either the Gobbato Builders or Owner Operator. The Owner Operator must submit written notice and have no booked loads and/or assigned routes.

Gobbato Builders reserves the right to deny any Owner Operator access and insurance.

BW
04/27/23

In addition, Gobbato Builders or Owner Operator may terminate this Agreement, including any obligations stated hereunder, with reasonable cause by providing written.

XV. Option to Terminate. The Gobbato Builders and Owner Operator shall have the option to terminate this Agreement unless there is a balance owed in their invoice statement for any reason. For example, if they took out a fuel advancement and they did not complete the load. In this scenario, the Owner Operator will owe a balance due to resolve their account before termination.

BW 04/27/23 9:44 AM PDT dotloop verified

XVI. Exclusive Agreement. This entire Agreement is between the Gobbato Builders and Owner Operator. Gobbato Builders do not double broker loads.

XVII. Resolving Disputes. If a dispute arises under this Agreement, any party may take the matter to a Texas state court.

XVIII. Confidentiality. The Owner Operator acknowledges that it will be necessary for the Gobbato Builders to disclose certain confidential and proprietary information to the Owner Operator in order for the Owner Operator to perform their duties under this Agreement. The Owner Operator acknowledges that disclosure to a third party or misuse of this proprietary or confidential information would irreparably harm the Gobbato Builders. Accordingly, the Owner Operator will not disclose or use, either during or after the term of this Agreement, any proprietary or confidential information of the Gobbato Builders without the Gobbato Builders's prior written permission except to the extent necessary to perform services on the Gobbato Builders's behalf.

Proprietary or confidential information includes, but is not limited to:

The written, printed, presentations, graphic, or electronically recorded materials furnished by Gobbato Builders for Owner Operator to view and use;

Any written or tangible information stamped "confidential," "proprietary," or with a similar legend, or any information that Gobbato Builders makes reasonable efforts to maintain the secrecy of business or marketing plans or strategies, customer lists, operating procedures, trade secrets, design formulas, know-how and processes, computer programs and inventories, discoveries, and improvements of any kind, sales projections, and pricing information; and

Information belonging to customers and suppliers of the Gobbato Builders about whom the Owner Operator gained knowledge as a result of the Owner Operator performing freight services.

The Owner Operator acknowledges that any breach or threatened breach of confidentiality of this Agreement will result in irreparable harm to the Gobbato Builders for which damages would be an inadequate remedy. Therefore, the Gobbato Builders shall be entitled to equitable relief, including an injunction, in the event of such breach or threatened breach of confidentiality. Such equitable relief shall be in addition to Gobbato Builders's rights and remedies otherwise available at law.

XIX. Proprietary Information. Proprietary information, under this Agreement, shall include:

The product of all work performed under this Agreement ("Work Product"), including without limitation all notes, reports, documentation, drawings, computer programs, inventions, creations, works, devices, models, works-in-progress, and deliverables, will be the sole property of the Gobbato Builders, and Owner Operator hereby assigns to the Gobbato Builders all right, title, and interest

therein, including, but not limited to, all audiovisual, literary, moral rights and other copyrights, patent rights, trade secret rights, and other proprietary rights therein. Owner Operator retains no right to use the Work Product and agrees not to challenge the validity of the Gobbato Builders's ownership in the Work Product;

Owner Operator hereby assigns to the Gobbato Builders all right, title, and interest in any and all photographic images and videos or audio recordings made by the Gobbato Builders during Owner Operator's affiliation with them, including, but not limited to, any royalties, proceeds, or other benefits derived from such photographs or recordings; and

The Gobbato Builders will be entitled to use Owner Operator's name and/or likeness use in advertising and other materials.

XX. No Partnership. This Agreement does not create a formal partnership relationship between the Gobbato Builders and the Owner Operator. Unless otherwise directed, the Owner Operator shall have no authority to enter into contracts on Gobbato Builders's behalf or represent the Gobbato Builders in any manner.

XXI. Assignment and Delegation. The Owner Operator may assign rights and may delegate duties under this Agreement to other individuals or entities acting as a subcontractor. The Owner Operator recognizes that they shall be liable for all work performed by the Subcontractor and shall hold the Gobbato Builders harmless of any liability in connection with their performed work.

The Owner Operator shall be responsible for any confidential or proprietary information that is shared with the Subcontractor in accordance with Sections XVIII & XIX of this Agreement. If any such information is shared by the Subcontractor to third (3rd) parties, the Owner Operator shall be made liable.

XXII. Additional Terms and Conditions. Additional terms agreed:

Responsibilities

It is the Owner Operator sole responsibility to:

Work Ethics & Behavior

BW 04/27/23 9:44 AM PDT dotloop verified

- Before accepting a load, you and/or your driver must complete training videos in the Relay phone app.
- Must be on-time 100% at the pickup location to avoid performance penalties.
- All Owner operators are responsible for training their drivers.
- Issues will happen on the road and with loads, always remain professional and calm at all times.
- Do not make unnecessary stops during your trip, fill up on fuel before your route.
- Communicate delays and trip issues on the Relay phone app with DETAILED notes.
- Accepting a load and canceling later is called a rejection. Unless it weather related, it will be grounds for dismissal from the program. NOT REJECTIONS ARE ACCEPTABLE. AVOID THEM AT ALL COSTS WITH BACK UP DRIVER OR TRUCK.
- Work with us to be your primary Dispatch. Owner Operators who work with multiple tend to not see the results they desire with us.
- It helps and reduces stress to be proficient and comfortable using a computer and phone app. So please browse through the phone app to get familiar and watch the training videos. We will NOT provide technical support.

BW

BN 04/27/23 9:44 AM PDT dotloop verified

- Maintain a positive Drug Test – CDL only
- Maintain active commercial insurance and DOT medical card
- Download and use Amazon Relay phone app

XXIII. Governing Law. This Agreement shall be governed under the laws in the State of Texas.

XXIV. Severability. This Agreement shall remain in effect in the event a section or provision is unenforceable or invalid. All remaining sections and provisions shall be deemed legally binding.

XXV. Breach Waiver. Any waiver by the Gobbato Builders of a breach of any section of this Agreement by the Owner Operator shall not operate or be construed as a waiver of any subsequent breach by the Owner Operator. No waivers or exceptions will be granted in the event of a breach of this agreement.

XXVI. Entire Agreement. This Agreement, along with any attachments, or addendums, represents the entire agreement between the parties. Therefore, this Agreement supersedes any prior agreements, promises, conditions, or understandings between the Gobbato Builders and Owner Operator.

Gobbato Buil
Signature _____ Date 03/07/2023

Print Name Eunice Gobbato, Manager (DOT# 3786346 MC# 1357325

Owner Operator's Signature Brendan Ngekei Ngwa Nforbi dotloop verified 04/27/23 9:44 AM PDT LNLS-ERPP-G3CV-LZWX Date 04/27/2023

Print Name Brendan Ngwa Nforbi (Altamont Freight LLC)

EXHIBIT

5

Amazon Relay Driver Setup Verification

Dated April 27, 2023 | 9:22 AM PDT
Verification Code: Y5RG-48F-25NG-P74W

I have read this guide

Brendan Ngehsi Ngwa Njorbi

dotloop verified
04/27/23 9:22 AM PDT
YSIG-4IIF-Z5NG-P7AW

Relay for Driver

Setting Up & Using the Mobile App

amazon relay

EXHIBIT

6

Brannon Tire Invoice

Dated April 28, 2023
Emergency Tire / Road Service: $1,197.34

BRANNON TIRE

3730 N. Wilson Way • Stockton, CA 95205
BRANCH (209) 467-0154 • FAX (209) 644-4443

PLEASE REMIT TO:
P.O. BOX 1988
STOCKTON, CA 95201

B.A.R. REG#: AC177400
EPA ID: CAL000206765
ESTIMATE #: 12871

3730 N WILSON WAY

STOCKTON, CA 95205

209/466-1881

PAGE: 1
TIME STARTED: 16:30:34

CUSTOMER: EST

1

SALESMAN: DANIEL LOPEZ
ESTIMATE DATE: 04/28/23 DUE: 04/28/23

PRODUCT	LCT	DESCRIPTION	QUANTITY	PRICE	EXTENSION
2548177023	0	29575R225 PC G167 22	4	163.99	655.96
256817391	0	295/75R22.5 RADIAL CASING	4	75.00	300.00
S-1200	0	MEDIUM TRUCK DISMT/MT	4	30.00	120.00
MTD	0	MEDIUM TRUCK TIRE DISPOSAL	4	15.00	60.00

MERCHANDISE:	955.96
LABOR:	120.00
OTHER:	60.00
SALES TAX:	61.38
ESTIMATE TOTAL:	1197.34

The Brannon Tire shop labor rate is $134.00/hr.
THANK YOU FOR CHOOSING BRANNON TIRE --- WE APPRECIATE YOUR BUSINESS
REPAIR WARRANTY INFO: PARTS=12 MONTHS LABOR=90 DAYS

I hereby authorize the repair work to be done along with the necessary material, and hereby grant you and/or your employees, permission to operate the vehicle herein described on the streets, highways or elsewhere for the purpose of testing and/or inspection. An express mechanic's lien is hereby acknowledged on above vehicle to secure the amount of repairs thereto. You will not be held responsible for loss or damage to the vehicle or articles left in the vehicle in case of fire, theft, accident or any other cause beyond your control.

Thank You for your business. **Retorque lug nuts after 50 miles.**

By signing below, the customer agrees to the service to be performed. Brannon Tire is not responsible for any item left in the vehicle. Any changes to the estimated charges will be approved before any work is done. Brannon Tire will charge a late fee of 1 1/2% per month up to a total of 18% per year on all invoices not paid by the terms on the invoice.

EXHIBIT

7

Mobile Will's Truck/Auto Repair Shop Invoice

Dated May 21, 2023
Repair Services: $740.00

MOBILE WILL'S TRUCK/AUTO REPAIR SHOP

ALL MAKES - MODELS -DIESEL-GAS-HYBRID & TIRE SERVICE
4800 New Horizon Blvd. "B" Bakersfield, ca. 93313

Job Work Order Lic. # 276846 ◉Mobile ○Shop **# 1391**

Shop: (661) 831-7724 - Mobile (661) 903-3674

Name: GO BBalta BUIDers II Date 5-21-13

Address _____ City _____

Phone: _____

Make Volvo Model D13 Lic. # MC 135715

○TRUCK ○TRAILER ○FORKLIFT ○EQUIPMENT ○RV
○REPAIR ○INSTALL ○DOT INSPECTION ○DIAGNOSTIC

QTY.	PART.#	DESCRIPTION OF PARTS OR MATERIAL	AMOUNT
		Service call	$ no charge
		Air Hose Install	60.00
		Will Fix Leak	
		Has a small	300.00
		compress	
		# USDot 378316	
		Total Materials	360.00
		Tax	
		Total Labor	
		Total Amount	$ 360.00

DATE WANTED DEPOSIT RECEIVED BY

ESTIMATES ARE FOR LABOR ONLY, MATERIAL ADDITIONAL, WILL NOT BE RESPONSIBLE FOR LOSS OR DAMAGE CAUSED BY FIRE, THEFT, TESTING, OR ANY OTHER CAUSES BEYOND OUR CONTROL

*AUTHORIZED BY: [signature]

VISA MasterCard

TERMS - NET CASH NO GOODS HOLD OVER 30 DAYS

EXHIBIT

8

Golden Empire Towing, Inc. Invoice

Dated May 26, 2023
Towing Services: $562.50

GOLDEN EMPIRE TOWING, INC.

1915 South Union Ave. • Bakersfield, CA 93307
8200 Buena Vista Blvd. • Lamont, CA 92341
14059 South Union Ave. • Bakersfield, CA 93307
14922 Hwy. 178 • Lake Isabella, CA 93240
901 Lebec Rd. • Lebec, CA 93243
10303 South Enos Lane • Bakersfield, CA 93311

(661) 834-8697

REQUESTED BY: Cash henry
LOCATION OF VEHICLE: 2609 Texas St.
YEAR, MAKE, MODEL: 11 Volvo VNL
COLOR: Red
DRIVER / TRUCK #: Tow 87
STATE: Tx LIC. PLATE NO.: 3093V28
VIN#: 4V4NC9EH6EN192206

DATE: 5.26.23 TIME: 12:30 ○ A.M. ○ P.M. PHONE: (779)837-7142
NAME: Brenda
ADDRESS:
CITY: STATE: ZIP:

DESCRIPTION OF WORK	AMOUNT
Cnl # 214322	
$300 Cash	
#162.50 Expedition	
MILEAGE: FINISH ____ START ____ TOTAL ____	MILEAGE
SERVICE TIME: FINISH 3:00 START 12:30 TOTAL 2.5 hrs	SERVICE TIME
EXTRA PERSON: FINISH ____ START ____ TOTAL ____	EXTRA PERSON
	TOWING CHARGE $275.00 plus 2hr Wait
	SPECIAL EQUIPMENT
	STORAGE
	SECOND TOW
	SUB-TOTAL
	TAX
	TOTAL $562.50

VEHICLE TOWED TO

FIRST TOW: 7156 Golden State Hwy
SECOND TOW:

TYPE OF TOW
- ☐ SLING/HOIST TOW
- ☐ FLAT BED/RAMP
- ☒ WHEEL LIFT
- ☐ _____

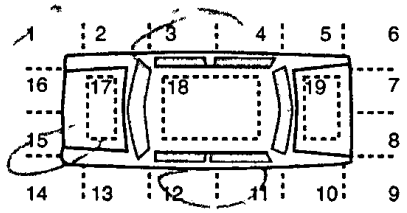
TOWED PER ORDER OF
- ☐ STATE POLICE
- ☐ LOCAL POLICE
- ☒ OWNER
- ☐ DEALER

REASON FOR TOW
- ☐ Accident
- ☐ Abandoned
- ☐ No Start
- ☐ Flat Tire
- ☐ Lock Out
- ☐ Tow Zone
- ☐ Stolen
- ☐ Snow Removal
- ☒ Breakdown
- ☐ Unregistered
- ☐ Out Of Gas
- ☐ Fire Lane
- ☐ No Trespass
- ☐ Arrest
- ☐ Impounded
- ☐ _____

CONDITION OF VEHICLE:

1-MINOR 2-MODERATE 3-EXTREME

KEYS LEFT Y N
RADIO Y N



20 Undercarriage ____

Upon request, you are entitled to receive a copy of the towing fees and access notice.

DAMAGE RELEASE:
Customer's own risk for valance and fiberglass - steering - damage caused by faulty tires - personal property left in vehicle. Towing company will not be held responsible after vehicle has been dropped.

SIGNATURE

METHOD OF PAYMENT
☐ CASH ☐ CHECK ☐ DRIVER LIC. # ____
☐ MasterCard ☐ VISA ☐ EXP. DATE ____
CREDIT CARD# ____

No. 487398

Thank You

TFP20099 REV. 06/20

Carrier Identification No. CA #0324688

EXHIBIT

9

Western Truck Center Invoice

Dated June 23, 2023
Lamp / Parts: $36.71

WESTERN TRUCK CENTER
3333 S 99 FRONTAGE RD
STOCKTON, CA 95215

333 S 99 W. Frontage Rd
ockton, CA 95215
(866) 980-6225

06/23/2023 12:10:17

DEBIT CARD

DEBIT SALE

Card #	XXXXXXXXXXXX2500
Network:	PULSE
Chip Card:	Discover Debit
AID:	A0000001524010
SEQ #:	16
Batch #:	97
INVOICE	141577
Approval Code:	002162
Entry Method:	Contactless
Mode:	Issuer - PIN Verified

SALE AMOUNT $36.71

DELIVERING EXCELLENCE
WHATEVER IT TAKES.

CUSTOMER COPY

Invoice: **085P141577**
Date / Time: 6/23/2023 12:09:10PM
Parts Order: 141577
Customer: 611272
Branch: Stoc
Invoice Total: $ 36.71
*** CASH ***
Page 1 of 1

Bill To: Casl
333
Stoc

Ship To: Cash Sales Taxable (Stockton)
3333 S 99 Frontage Rd
Stockton, CA 95205

Customer P/O:

Inside Slmn: renee.whitfield Delivery Method: Will Call

Supplier	Part /	Number	U/M	Quantity	Price	Ext Price
Volvo Pro	8472		EA	1	$33.68	$33.68

Bin Location:V10D

Detail Tax Info:

Sales Tax	$3.03
Total	$3.03

085P141577

Invoice Subtotal:	**$33.68**
Total Tax:	**$3.03**
Invoice Total:	**$36.71**

Payment Method:	Payment Terms:	Due Date:
CASH	Due Upon Receipt	06/23/2023

Remit To:
Western Truck Center - Stockton, CA
P.O. Box 35144 #1022
Seattle, WA 98124-5144

Signature _____

Any warranty, if any, provided for the parts sold herein are warranties of the manufacturer of the parts and not warranties of the Seller. ALL PARTS DELIVERED TO THE BUYER UNDER THIS CONTRACT ARE SOLD BY SELLER TO BUYER AS IS WITH ALL FAULTS. SELLER MAKES NO WARRANTY OF ANY KIND WHATEVER, EXPRESS OR IMPLIED; AND ALL IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE ARE HEREBY DISCLAIMED BY SELLER AND EXCLUDED FROM THIS AGREEMENT and the Seller shall in no event be liable for a breach of warranty in an amount exceeding the purchase price of the parts.

Returned items for new part credit must be in a new and saleable condition, in original packaging, and accompanied by the original purchase invoice. Returns are not accepted on special order items, parts returned after 30 days from original purchase, any electrical equipment or part, broken or partial kits, and gasket sets.

Cores must be returned within 30 days of original purchase, must meet manufacturer acceptable core criteria, must be a like for like part/core, must be completely assembled & drained of all fluids, returned in original part packaging.

Warning: Products being sold to you can expose you to chemicals which are known to the State of California to cause cancer, birth defects, or other reproductive harm. For more information go to www.P65Warnings.ca.gov.

Customer Signature: _____ Date: _____

EXHIBIT

10

Notice of Stored Vehicle (CVC § 22852)

Dated May 23, 2023
Issued by: Commercial Towing
2609 Texas Street, Bakersfield, California

NOTICE OF STORED VEHICLE (22852 CVC)

AH 19127

NOTE: CHP 180 IS FURNISHED TO ALL PEACE OFFICERS BY THE CALIFORNIA HIGHWAY PATROL

REPORTING DEPARTMENT	LOCATION CODE	DATE / TIME OF REPORT	NOTICE OF STORED VEHICLE DELIVERED PERSONALLY	FILE NO.
CHP BAKERSFIELD	9420	5-23-23 1817	☐	V-01444-420-23

LOCATION TOWED / STOLEN FROM	ODOMETER READING	VIN CLEAR IN SVS?	LIC. CLEAR IN SVS?	DATE / TIME DISPATCH NOTIFIED	LOG NO.
WINGS WAY @ PETROL	UNK	☒ YES ☐ NO	☒ YES ☐ NO	5/23/23 1920	238

YEAR	MAKE	MODEL	BODY TYPE	COLOR	LICENSE NO.		MONTH / YEAR	STATE
14	VOLV	TRACTOR	2D / TRACTR	RED	3093V28	☐ ONE ☐ TWO	05/23	TX

VEHICLE IDENTIFICATION NO.	ENGINE NO.	VALUATION BY	
4V4NC9EH6EN142206		☒ OFFICER ☐ OWNER	☐ 0-500 ☐ 501-4000 ☒ 4001+ ☐ $ ____

REGISTERED OWNER

NFORBI BRENDAN
1455 CAT TAIL DRIVE
STOCKTON, CA 95204

☒ SAME AS R/O

LEGAL OWNER

☒ STORED ☐ IMPOUNDED ☐ RELEASED ☐ RECOVERED - VEHICLE / COMPONENT

TOWING / STORAGE CONCERN *(NAME, ADDRESS, PHONE)* 6613259500 93307

COMMERCIAL TOWING 2609 TEXAS ST BAKERSFIELD

STORAGE AUTHORITY / REASON: 22651(b)VC

REASON FOR STOP: BLOCKING ROADWAY / CALL

AIRBAG? ☐ YES ☒ NO ☐ 1 ☐ 2

DRIVEABLE? ☐ YES ☐ NO ☐ JUNK ☒ UNK

VIN SWITCHED? ☐ YES ☒ NO

CONDITION	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	TIRES / WHEELS	CONDITION
WRECKED		/	SEAT (FRONT)	/		REGISTRATION		/	CAMPER		/	LEFT FRONT	FAIR
BURNED HULK per 431(c) CVC		/	SEAT (REAR)	BR	/	ALT. / GENERATOR	/		VESSEL AS LOAD		/	RIGHT FRONT	
VANDALIZED		/	RADIO	/		BATTERY	/		FIREARMS		/	LEFT REAR	
ENG. / TRANS. STRIP		/	TAPE DECK		/	DIFFERENTIAL	/		OTHER		/	RIGHT REAR	
MISC. PARTS STRIP		/	TAPES		/	TRANSMISSION	/					SPARE	NONE
BODY METAL STRIP		/	OTHER RADIO		/	AUTOMATIC	/					HUB CAPS	NONE
SURGICAL STRIP per 431(b) CVC		/	IGNITION KEY		/	MANUAL		/				SPECIAL WHEELS	NONE

RELEASE VEHICLE TO: ☒ R/O OR AGENT ☐ AGENCY HOLD ☐ 22850.3 CVC

GARAGE PRINCIPAL / AGENT STORING VEHICLE *(SIGNATURE)*: CHRISTIAN BRINK

DATE / TIME: 5/23/23 1920

NAME OF PERSON / AGENCY AUTHORIZING RELEASE | I.D. NO. | DATE

CERTIFICATION: I, THE UNDERSIGNED, DO HEREBY CERTIFY THAT I AM LEGALLY AUTHORIZED AND ENTITLED TO TAKE POSSESSION OF THE ABOVE DESCRIBED VEHICLE.

SIGNATURE OF PERSON AUTHORIZING RELEASE

SIGNATURE OF PERSON TAKING POSSESSION

SEE REVERSE FOR INFORMATION